

National Diagnostic Report

Work Package 2

Legal Analysis and Cooperation between Civil Society and Public Authorities



Co-funded by the
European Union

Country: ITALY

Deliverable: D2.1 – National Diagnostic Report

Project Acronym: RomaNet

Project Number: 101215052

Programme: CERV-2024-CHAR-LITI

Date of Submission: FEBRUARY 24, 2026

Beneficiary: ROMNI APS





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Table of Contents

Table of Contents:

List of Abbreviations	4
1. Executive Summary	5
2. Introduction	6
3. Methodology	10
4. Legal Framework on Hate Crime and Hate Speech	11
4.1 What is a hate crime? General definition and its constituent elements	11
4.2. National Legal Framework: Regulation	16
5. Institutional Framework and Responsible Authorities	30
6. Current Situation in the country	35
7. Roma-Specific Context and Impact	43
8. Preliminary Recommendations	49
9. References and Sources	51

List of Abbreviations

<i>AGCOM</i>	National Guarantor Authority on Communications
<i>ANCI</i>	<i>National Association of Italian Municipalities</i>
<i>CCPR</i>	<i>UN Human Rights Committee</i>
<i>CP</i>	<i>Penal Code</i>
<i>CPP</i>	<i>Penal Procedural Code</i>
<i>ISTAT</i>	National Office of Statistics
<i>OSCAD</i>	Observatory for Security Against Discriminatory Acts
<i>UNAR</i>	National Office Against Racial Discriminations
UPR	Universal Periodic Review

“The 2023 Eurobarometer on Discrimination in the EU indicates that 65% of EU citizens consider that discrimination against Roma is widespread in their countries (compared to 61% in 2019). More than half of respondents say there is widespread discrimination in their country on the basis of being Roma (65%), skin colour (61%), ethnic origin (60%), gender identity (being transgender - 57%) or sexual orientation (54%).

Developments in some key areas are heartening (...). Unfortunately, the likelihood of reaching the stated EU goals by 2030 now seems very low. This signals a worrying lack of commitment to changing the experiences of Roma and Travellers, both now and for future generations¹”

1. Executive Summary

Key Findings

- Hate crime legislation in Italy appears legally robust but is unevenly applied in practice.
- Underreporting remains significant, particularly among Roma communities.
- Bias motivation is not consistently identified or prosecuted.
- Data collection mechanisms remain fragmented across institutions.
- Coordination between public authorities and civil society is present but could be strengthened.
- Roma communities experience structural discrimination affecting access to justice.

Main Enforcement Gaps

- Gap between legal provisions and practical enforcement.
- Limited recognition of racist motivation during investigations.
- Insufficient harmonisation of data collection.
- Institutional mistrust among vulnerable communities.
- Limited Roma-specific enforcement visibility.

Preliminary Recommendations

- Strengthen specialised training for police and prosecutors on bias indicators.
- Improve coordination and data harmonisation across institutions.

¹ EU-FRA Director, Sirpa Rautio (2025).

- Enhance victim-centred reporting mechanisms.
- Reinforce cooperation between public authorities and Roma civil society organisations.
- Increase transparency regarding investigation and prosecution outcomes.

2. Introduction

Roma people are not among the twelve historic linguistic minorities² envisaged by Act No. 482/1999, entitled “Provisions to Protect the Historic Linguistic Minorities”, in accordance with Article 6 of the Italian Constitution.³

From a legislative standpoint, the lack of protection of Roma as a minority remains a concern.

As reported in the first Italian Roma Inclusion Strategy, “for those stateless people without both a clear nationality (“undetermined nationality”) and a stay permit, it is necessary that they are regularized or receive documents identical to those released to the other citizens. The constant threat of expulsion from Italy, the strict relation between the stay permit and the job contract, the difficulties to have access to basic services (including socio-health related ones) concretely hinder a fruitful social integration/inclusion process”.

- The differing legal statuses characterizing Roma, including in the same family unit, may also lead to intra-family discrimination.
- More generally, it remains pending “recognition, by a comprehensive national legislation, of Roma, Sinti and Caminanti (RSC) people as a minority. To date, Roma, Sinti and Caminanti people acquire rights *de jure*, only as individuals; they do not enjoy any rights as a “minority”, since there is no specific national legislation, yet”.

Discrimination, violence, and difficult living conditions require targeted and/or more stringent protection measures. The aforementioned Senate Commission’s Survey notes that there is a significant underestimation of the phenomenon due to the difficulty, the victims of hate crimes have in reporting (under-reporting), and there is also a difficulty for the public Authority receiving the complaint to act with the necessary determination and professionalism (so-called under-recording). As indicated earlier on, under-reporting (victims' tendency not to report) and under-recording (law enforcement's failure to

² Twelve are the historic linguistic minorities officially recognized by the Italian state: French, Occitan, Franco-Provençal, German, Ladin, Friulian, Slovene, Sardinian, Catalan, Arberesh, Greek and Croatian.

³ “The Republic safeguards linguistic minorities by means of appropriate measures”.

recognize the discriminatory nature of the offense) hinder effective repressive and preventive action⁴.

Against this background, the Italian legal system does not provide a definition of hate crime. Nonetheless, it has several rules on the protection of inviolable human rights and on the principles of equal dignity and equality of all human beings, as enshrined in articles 2⁵ and 3 of the Constitution of the Italian Republic⁶.

- Article 3 of the Italian Constitution envisages the principle of (so-called) formal and substantial equality⁷. “All citizens have equal social dignity and are equal before the law without distinction of sex, race, language, religion, political opinion, personal and social conditions⁸. It is the duty of the Republic to remove those obstacles of an economic or social nature which constrain the freedom and equality of citizens, thereby impeding the full development of the human person and the effective participation of all workers in the political, economic, and social organization of the country⁹”.

Despite the wealth of the regulatory framework, some areas remain unresolved such as the lack of comprehensive legislation on online hate speech.

- At an international law level, scholars also indicate that there is a tendency: “State only sanction the most extreme behaviour¹⁰”.

Moreover, it is widely believed that recourse to penal law should be an *extrema ratio* and that the fight against hate speech should be entrusted to different tools, mainly educational, training, and cultural-type ones. At the same time, as the aforementioned Extraordinary Committee of the Senate¹¹ recalls, most hearings highlighted how the current regulatory framework has not proven effective.

⁴ [Il fenomeno dei crimini d'odio](#): radici filosofiche, profili sociologici e quadro normativo, Cristina Esposito, ALTALEX.

⁵ Article 2 stipulates that “The Republic recognises and guarantees the inviolable rights of the person, both as an individual and in the social groups where human personality is expressed. The Republic expects that the fundamental duties of political, economic and social solidarity be fulfilled”.

⁶ For an overview, please kindly refer to «[Fundamental Rights in the EU Law system and in the domestic ones](#)», Italian Constitutional Court, Research Unit, Madrid, 27 October 2017, page 11 et ff

⁷ It entails the prohibition of discrimination.

⁸ So-called formal equality.

⁹ So-called substantial equality.

¹⁰ Hate speech and human rights in Eastern Europe, Legislating for Divergent Values Viera Pejchal, Routledge Research in Human Rights, London, 2020.

¹¹ Please kindly refer to FN.No. 7.

Violent crime, including hate crime, can result in a violation of fundamental rights, in particular the rights to human dignity and the integrity of the person (Articles 1 and 3 of the Charter of Fundamental Rights).

- The Roma Survey 2024 asked respondents about their experiences of physical violence (i.e., being physically attacked – for example, being hit, pushed or grabbed) that they perceived as motivated by their Roma/Traveller background. On average, 1% of respondents report such incidents, which is similar to the results from the previous Roma/Traveller surveys. The situation has worsened with regard to the reporting of discrimination, despite increased awareness of human rights institutions and increased trust in the legal system and the Police.
- The data also suggests that COVID-19 has had a large impact on Roma across the countries surveyed¹². In this respect, of relevance is also the data provided by UNAR Contact Centre in [UNAR annual report to the Parliament](#) (the latest available refers to the year 2024).
 - Considering above indications, in terms of (initial) main findings it is essential to ensure adequate legal and psycho-social support, especially for Roma women and youth, with a view to facilitating their effective access to justice.

¹² This report presents data on Roma and Travellers at the midpoint of the EU Roma framework's timeline, collected through FRA's 2024 Roma Survey in ten Member States and three accession countries. It is structured based on the objectives of this policy framework. Data from the Roma Survey 2024 suggest that, on average for the 10 Member States studied, there have been improvements in Roma/ Travellers' access to fundamental rights since 2016 (2019 for France and Ireland) with regard to 10 out of the 16 headline indicators used for monitoring in the EU Roma framework. This means that Roma and Travellers had greater access to certain rights in 2024 than in the past. These include the right to a standard of living adequate for the health and well-being of individuals and their families (partial improvement), the right to education (partial improvement), the right to work (partial improvement) and the right to access preventative healthcare and to benefit from medical treatment. The situation has worsened with regard to the reporting of discrimination, despite increased awareness of human rights institutions and increased trust in the legal system and the police. No change has been observed with regard to five indicators, which relate to targets regarding discrimination (overall and in individual areas of life), segregation in education, gender equality in employment and overcrowding. The first four are directly linked to rights guaranteed by aforementioned EU human rights law. The data also suggest that COVID-19 has had a large impact on Roma across the countries surveyed. The report presents a number of positive developments, all of which are linked to the aforementioned rights. They include fewer Roma/ Travellers experiencing poverty, material deprivation and housing deprivation, more Roma/Travellers trusting the police or the legal system in their country, more Roma/Traveller children participating in early childhood education, more Roma being engaged in paid work and a decrease in the gap between Roma/Travellers and the general population with regard to life expectancy at birth. However, there are still areas showing negative developments in terms of Roma/Travellers' access to fundamental rights. Over the past decade, Roma/Travellers in all countries surveyed have faced increasing levels of discrimination. This is true overall, but especially with respect to their access to specific socioeconomic rights (education, employment, health and housing). Roma/Traveller children are still predominantly educated in segregated facilities and Roma/Travellers still frequently live in overcrowded dwellings. The data suggest that most of the EU-level goals set by the EU Roma framework for increasing effective equal access to quality and sustainable employment are likely to be achieved by 2030. However, the remaining six EU-level objectives are not likely to be achieved by then. No country is likely to achieve the EU-level goals set for antigypsyism and discrimination, participation or health. Two countries each are likely to achieve the EU-level objectives on poverty and social exclusion (Bulgaria and Hungary) and education (Bulgaria and Italy). Four countries each are likely to achieve the objectives on employment (Bulgaria, Hungary, Italy and Romania) and housing (Czechia, Greece, Italy and Spain). A closer look at the individual goals shows that all of the countries have the most difficulty with those related to closing the gap between Roma/Travellers and the general population.

- Access to justice is not meant *strictu sensu* as access to Court. Indeed, access to justice is to be meant as enjoyment of human rights by accessing *inter alia* housing, labour, education, and health.
- This report has found: limited human rights education and training (HRE); uncertain legal status for Roma (still); under-reporting (lack of confidence in Institutions); under-recording; need for specific investigations and further focus on bias indicators, especially with regard to hate speech (both online and offline) and hate crime (including stalking and femicide/feminicide); limited collection of statistical information which is essential to steer relevant policies and measures.
- All the above impacts on judicial and legal enforcement with gaps and weaknesses ultimately due to, *inter alia*, lack of: relevant legislation; comprehensive statistical data; systemic human rights education and training, including for media professionals, social care providers, the judiciary and legal professionals. Aside from knowledge, capacity, and implementation gaps and weaknesses, the situation of Roma, especially women and youth, remains at stake.
- On the occasion of last consideration of Italy (on January 20, 2025) under United National Human Rights Council's Universal Periodic Review (UPR Cycle 4),¹³ [the following recommendations](#) were put forward by UN membership (and accepted by Italy):
 - *Take steps to reduce discrimination in public services, housing and education for members of marginalized communities, including (..) Roma (..)*
 - *Combat discrimination and social exclusion of minorities, particularly Roma and Sinti communities, by guaranteeing equal access to housing, healthcare, education and employment opportunities*
 - *Take action to address the challenges faced by Sinti and Roma minorities, such as discrimination within schools, social exclusion and access to housing*
 - *Continue efforts to combat discrimination against Roma, Sinti and Camminanti communities*
 - *Continue to promote access to education, work and housing for minority populations as part of the national strategy for Roma, Sinti and Camminanti*

¹³ Report of the (UN Human Rights Council) Working Group on UPR – Italy UN Doc. A/HRC/59/4 dated March 2025.

- *Strengthen efforts to address the ongoing de facto statelessness, especially among Roma in formal settlements without regular documentation.*

In terms of additional preliminary main recommendations, the effective domestication of relevant international and regional human rights standards is therefore an issue to be considered.

3. Methodology

In terms of sources, the present report has utilized the latest available statistical data and information stemming from international, regional, and national institutions, besides giving due consideration to indications from previous EU-funded projects, which include interviews with Roma women.

Desk research, case-law and data analysis have been considered and introduced with a view to providing the most updated information, collected in such a way to facilitate the understanding and the subsequent utilization.

Statistical data and information are to be read in accordance with EU and domestic privacy law, with an impact on a comprehensive picture of the situation on the ground.

In any case, the overall information has been provided with a view to eventually inform possible specific actions to be either developed or further strengthened in the very near future.

4. Legal Framework on Hate Crime and Hate Speech

Hate crime is a crime, not an opinion, not a manifestation of thought. Incitement to hatred has nothing to do with freedom of expression, in fact it is the denial of it. Hate speech constitutes today more than ever a new instrument of inequality and injustice. They have distorting effects, with the risk of a regression in public spirit and levels of civilization.

4.1 What is a hate crime? General definition and its constituent elements

The Italian relevant provisions aim to combat racism, racist and xenophobic speech, and all actions directed to spread ideas founded on racial or ethnic hatred and the incitement to commit acts of violence on racial, ethnic, or religious grounds. The legislation in force punishes the establishment of organizations, associations, movements, or groups that have, among their purposes, the incitement to discrimination or to violence pushed by racial, ethnic, or religious motivation¹⁴. The Italian legal system also provides for a special aggravating circumstance for all crimes committed on the ground of discrimination or racial hatred.

By repealing previous provisions, Decree No. 21/2018 introduced in the Penal Code Article 604-bis “Propaganda and incitement to commit a crime for discrimination purposes, on the ground of race, religion, and ethnic origin” and Article 604-ter (Aggravating circumstance¹⁵), respectively.

- Art. 604-bis [Propaganda and incitement to commit crime for discrimination on racial, ethnic, and religious grounds]. “Unless the fact constitutes a more serious offence: a) whoever disseminates ideas based on racial superiority or racial/ethnic hatred, or incites to commit/commits discrimination acts on racial, ethnic, national or religious grounds shall be punished with imprisonment up to one year and six months or with a fine up to 6,000 euro; b) whoever, in any way, incites to commit/commits violence or acts of provocation of violence on racial, ethnic, national or religious grounds shall be punished with imprisonment from six months to four years; Any organization, association, movement or group which, in any way, incites to discrimination or violence on racial, ethnic, national or religious grounds

¹⁴ From a historical standpoint, Act No. 654 of 13 October 1975 (known as the “Reale Act”), as later amended by Act No. 205 of 25 June 1993 (known as the “Mancino Act”) and Act No. 85 of 24 February 2006, criminalizes: a) incitement to racial discrimination; b) racial discrimination; c) incitement to racial violence; d) racial violence; e) the promotion of ideas based on racial superiority or ethnic or racist hatred; f) the establishment or management, participation in or support to any organization, association, movement or group, the purpose of which is the instigation of racial discrimination or violence. The Mancino Act also prohibits the public display of symbols and emblems of such organizations and makes racist bias an aggravating circumstance in connection with any offence. Specifically, the racial ground is of relevance as an aggravating circumstance of any other offence in accordance with Article 3 of the “Mancino Act”. The Parliament introduced the EU Framework Decision 2008/913/JHA by: Law No. 116/2016, by which the crime of the “Holocaust denial” has been introduced; and Law No. 167/2017, which introduces the sentence: « (...) on grossly trivializing or condoning» after the words: «are based, in whole or in part, on denying».

¹⁵ The former repealed Article 3 of Law No. 654/1975, the latter repealed Article 3 of Law No. 205/1993 (Mancino aggravating circumstance). The following translation in English is available at the following link: <https://hatecrime.osce.org/hate-crime-legislation-italy>

shall be prohibited. Whoever participates in said organizations, associations, movements or groups or supports their activities shall, by the mere fact of participating or supporting, be punished with imprisonment from six months to four years. Whoever promotes or directs said organizations, associations, movements, or groups shall, for that reason alone, be punished with imprisonment from one to six years. The punishment shall be from two to six years' imprisonment if the propaganda or the instigation and incitement - committed in such a way that a real danger of dissemination arises - are fully or partially based on the denial, gross trivialization or condoning of the Holocaust, or the crimes of genocide, crimes against humanity and war crimes set out in Articles 6, 7 and 8 of the Statute of the International Criminal Court".

- Art. 604-ter [Aggravating circumstance] "The penalty shall be increased by up to a half of the sentence for crimes punishable with a penalty other than life imprisonment committed for purposes of discrimination or ethnic, national, racial, or religious hatred, or to facilitate the activities of organizations, associations, movements, or groups having said purposes. The mitigating circumstances, other than the one envisaged under Article 98, when concomitant with the aggravating circumstance set out in subsection 1, may not be deemed equal to or more important than the latter and sentence reductions shall be based on the length of the sentence resulting from the increase consequent to the aforesaid aggravating circumstance".

As indicated by OSCAD¹⁶, "the definition generally used is the one provided by the OSCE-ODIHR, according to which hate crime is a criminal act committed against an individual and/or property associated with him/her, motivated by a prejudice, the perpetrator has towards the victim based on a "protected characteristic" of the latter.

To be considered a hate crime, the offence must meet two criteria: first, the act must constitute an offence under penal law (so-called base crime); second, the act must have been motivated by bias against the person chosen as a "target". That is the reason why hate crimes are also defined as target crimes or message crimes because they are crimes with a specific target and the perpetrator intends to send through them a message of non-acceptance of that person and of the community, he/she belongs to.

- This definition refers to fundamental or core characteristics shared by a group of people, which reflect a profound aspect of an individual's identity and create a typical group identity".

Amongst the characteristics mostly protected, mention has to be made of the following: race, religion, national or ethnic origin, sexual orientation, gender identity, disability. "These characteristics can be real, when victims (or property associated with a particular group such as a place of worship') or presumed, when the perpetrator chooses the victim erroneously thinking he/she is linked to a minority group".

OSCAD indicates that "The main features of hate crimes are: their multi-offensive nature, the occurrence of under-reporting and under-recording and the risk of escalation.

¹⁶ Op.cit. FN No. 7.

- They are multi-offensive crimes, that is, ‘they impact on several levels. As a matter of fact, when a hate crime is committed, it firstly affects the victim(s) (who were simply chosen on account of one or more protected characteristics). Provided that the relevant characteristic represents a shared identity for a given community, the attack does not limit its harmful effects to the direct victim(s), but indirectly damages the minority group he/she belongs to.
- The phenomenon of under-reporting means that victims and witnesses of hate crimes tend not to report them for various and complex reasons (especially psychological ones). The main difficulties for victims and witnesses to report hate crimes lie in: Lack of awareness (or rejection) of the fact that the reason of the assault was the prejudice against the protected characteristic they often blame themselves for; lack of confidence in police forces and the fear that a full investigation will not be undertaken; fear of an invasion of their privacy; fear of retaliation; lack of knowledge of the language and of the national legal system.
- On the other hand, under-recording refers to the cases where the police forces do not recognize the discriminatory nature of the reported crime and, consequently, do not record it or investigate it as such. This may happen for various reasons: lack of recognition of the so-called “bias indicators”, that is of the clues that allow detecting the discriminatory motive behind the crime; lack of awareness/appropriate training in relation to this phenomenon; shortage of resources”.

Finally, the risk of escalation derives from the social acceptance of discrimination against some minority groups (phenomenon of the “normalization of hate”) that nurtures the increase of hate crimes. as a matter of fact, wherever low-level discriminatory conducts are accepted by society since not perceived as offensive – but rather interpreted as jokes or episodes of “gang spirit” – and therefore not properly combated. There is a high risk of escalation: from bias motivated attitudes and behaviour to real acts of discrimination (in accessing public services, at work, etc.) up to more serious penal conduct (vandalism, desecration of sacred places, threats, assaults)¹⁷”.

With regard to hate speech, according to Recommendation (97)20 of the Committee of Ministers of the Council of Europe, “the term hate speech shall be understood as covering all forms of expression which spread, incite, promote or justify racial hatred, xenophobia, anti-Semitism or other forms of hatred based on intolerance, including intolerance expressed by aggressive nationalism and ethnocentrism, discrimination and hostility towards minorities, migrants and people of immigrant origin”. A further definition can be deduced from the Framework Decision 2008/913/JHa, stating that hate speech is “any conduct publicly inciting to violence or hatred directed against a group of persons or a member of such a group by reference to race, colour, religion, descent or national or ethnic origin”.

¹⁷ This concept is illustrated in the so-called Pyramid of Hate (Annex No. 5).

Within the UN framework, “In terms of general principles¹⁸, a clear distinction should be made between three types of expression: expression that constitutes a criminal offence; expression that is not criminally punishable, but may justify a civil suit or administrative sanctions; expression that does not give rise to criminal, civil or administrative sanctions, but still raises concern in terms of tolerance, civility and respect for the rights of others (..)”.

As emphasized by OSCAD,¹⁹ among the main bias indicators, mention has to be made of the following:

“Victim/witness perception: how victims (or witnesses) perceive the crime they experience (or witness) is an important indicator that should prompt investigators to look for further objective clues aimed at establishing the discriminatory motive for the crime.

Disparaging comments, gestures, written statements, drawings, symbols, and graffiti (the perpetrators of hate crimes frequently want to make clear their bias, non-acceptance or hate -as a matter of fact, hate crimes are also known as message crimes, i.e., crimes which convey a message).

Differences between perpetrators and victims based on ethnicity, religion, or other factors (for example, sexual orientation) are important indicators, mainly – but not necessarily – when the victims belong (or are perceived to belong) to so-called minority groups.

Links with so-called organized hate groups (i.e., groups involved in hate crimes or hate speech) or their members (maybe, the offender is not a member of any such group but may share its ideology or violent methods).

Location (the crime has been committed close to a place of worship (a synagogue, a mosque, a church) or a place mainly frequented by people prone to discrimination (LGTBI, migrants).

Date, timing (the offence has been committed on a day of significance for a certain community, such as an anniversary or a religious holiday).

Patterns/frequent previous crimes or incidents (the crime is similar to other incidents that have occurred over a certain time span): a criminal pattern or a serial behaviour can be observed.

Nature of the attack: in hate crimes, the degree of violence tends to be particularly high and is often accompanied by serious injuries or degrading treatment which are usually made public by the offender him/herself on the Web.

¹⁸ See the UN Rabat Plan of Action on the prohibition of advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence, especially “Conclusions and recommendations emanating from the four regional expert workshops organized by OHCHR in 2011, and adopted by experts at the meeting in Rabat, Morocco, on 5 October 2012¹⁸”.

¹⁹ Op.cit, FN No. 7.

Lack of the motives (sometimes there are not apparent motives for the crime). The victim and the suspect are not acquaintances and any quarrel that may have triggered the attack appears to be just an excuse. There is no economic motivation. In these cases, discrimination could be the only possible motive.

Indicators of prejudice (internationally known as ‘bias indicators’) are facts and circumstances that can lead to posit that a hate crime – that is a crime motivated by the offender’s prejudice against the victim due to his/her protected characteristics (either real or presumed by the offender) – has been committed.

As recalled by OSCAD, ODIHR defines bias indicators as “objective facts, circumstances, or patterns attending a penal act(s), which, standing alone or in conjunction with other facts or circumstances, suggest that the offender’s actions were motivated, in whole or in part, by any form of bias.” This definition *per se* explains why they are so important for investigative purposes: they are the facts and circumstances that can allow investigators to detect the discriminatory motivations behind the offender’s selection of that particular target (i.e., his/her motive). Consequently, their inclusion in the case file will allow the judicial authority (prosecutors or judges) to establish whether the incident should be prosecuted as a hate crime (applying, for example, the aggravating circumstances set down in article 604ter of the Italian Penal Code).

The importance of bias indicators – as well as the need for an accurate analysis of the overall context in which the incident has occurred – are clearly stressed in some rulings handed down by the Italian Court of Cassation (Cass. No. 434/99; and Cass. No. 16328/12). In order to establish the discriminatory motive of an offense, the existence or non-existence of a specific indicator is not a critical factor and that it is necessary to analyse the whole context”.

One specific characteristic of hate crimes is a particular vulnerability of victims. The typical needs of victims of any type of crime (protection, information, listening, reassurance) acquire peculiar characteristics in case of hate crimes as they affect a specific aspect of the victim’s identity.

Hate crimes are often not exactly perceived as real offences in the social context. They remain hidden, are trivialized, regarded as jokes and sometimes the same victims do not recognize themselves as such, although they are humiliated in their dignity. This kind of victims, more than others, feel ashamed, guilty, and lonely; due to these emotions, they may appear reticent and less collaborative. Frequently victims are foreigners, unaware of Italian procedures and may be frightened by the possible retaliation resulting from making public the details of the crime suffered.

- OSCAD indicates that “The Police officers’ ordinary cultural baggage and experience, adequate in most cases, cannot suffice: they must acquire precise information on

the victims' traditions as well as on their religious and ethnic environment because an inopportune word or a misinterpreted humorous remark may raise barriers between persons having different backgrounds".

- This may negatively contribute to *inter alia* under-reporting and secondary victimization.

Under the UN Rabat Plan of Action, it is emphasized the need to ensure: "An independent judicial infrastructure that is regularly updated with regard to international standards and jurisprudence and with members acting in an impartial and objective manner, as well as respect for the rules of due process, (...) crucial for ensuring that the facts and legal qualifications of any individual case are assessed in a manner consistent with international human rights standards. This should be complemented by other checks and balances to protect human rights, such as independent national human rights institutions established in accordance with the Paris Principles".

- Unlike most EU countries, the establishment of an independent NHRI in Italy is still highly debated²⁰.

4.2. National Legal Framework: Regulation

- Complementary laws and specific regulations.
- Jurisprudence: criteria used by courts. Relevant cases.

From a regulatory standpoint, the rights of crime victims, including hate crime victims, have been enshrined into Italian legislation, by Legislative Decree No. 212/2015, transposing Directive 2012/29/EU (so called "Victims' Directive").

- All victims are granted specific rights, implying corresponding obligations, which in brief give voice to their needs to: receive information, have an active role, be respected, protected, heard, helped in accessing justice, financially compensated and psychologically supported.

In case of penal offences committed with violence against the person, victims can ask to be informed about the release of the accused or convicted person or the termination of pre-trial measures imposed on them and must be promptly informed about their escape from custody or from pre-trial detention measures (article 90-ter cpp).

The victims of hate crimes belong to the category of "particularly vulnerable" victims, as set out by article 90-quater of Italian Penal Procedure Code, which permits to include, among particularly vulnerable victims, people with disabilities, victims of ethnic and racial motivated crimes and, more in general, all victims of discrimination-based crimes (as for example those motivated by homophobia and transphobia). As indicated by OSCAD¹

²⁰ For an overview, please kindly refer to GANHRI: <https://ganhri.org/membership/>

regarding the relevant penal procedural law, “such wording makes it possible, in principle, to consider all hate crime victims, including homophobic/transphobic hate crime victims, as particularly vulnerable victims”:

- Article 90-quater of the Code of Penal Procedure envisages as follows, “1. For the purposes of the provisions of this Code, the particular vulnerability of the injured party (victim) is inferred not only from the age and state of infirmity or mental deficiency, but also from the type of crime, the modality and circumstances of the act being prosecuted. In assessing the condition, attention is paid to whether the conduct was committed with violence against the person or racial hatred, whether it is linked to organized crime or terrorism, including international terrorism, or human trafficking, whether it is characterized by discriminatory purposes, and whether the injured party is emotionally, psychologically, or economically dependent on the perpetrator²¹”.

This status results in a strengthened protection during the special evidentiary hearing, the trial phase and also before, during preliminary investigations, when the audio-visual recording of the statements of particularly vulnerable victims is always permitted (article 134 cpp) and the judicial police can avail themselves of psychologists’ support regardless of the age of the victim, who shall not be repeatedly called to the stand, unless absolutely necessary, and will have no contacts with the suspect during the hearing (article 351 para.1-ter cpp)²².

Needless to say, from a penal procedural law standpoint, it is to be also recalled that in accordance with the Italian (rigid) Constitution, penal action by the public prosecutor is mandatory (Article 112 of the Constitution): prosecutors are therefore able to investigate any alleged discriminatory motive associated with a crime.

Among the main civil and administrative law provisions against racial discrimination, mention has to be made of the following: Act No. 300/1970 on labour; Legislative Decree No. 286/1998 et ff., known as Unified Text on Immigration; and Legislative Decrees No. 215/2003 and 216/2003 transposing Directives 2000/43/EC and 2000/78/EC into the Italian legal system.

²¹ Victims’ Legislation - Legislative Decree No. 212/2015 implemented 2012/29/EU Directive establishing minimum standards on the rights, support and protection of victims of crime, and replacing Council Framework Decision 2001/220/JHA.

²² The following articles of the code of penal procedure (cpp) are extremely important: articles 90-bis; 90-ter; 134, para. 4 ; and 351, para. 1-ter: Art. 90-bis (Providing information to the victim) The victim has the right to obtain, in a language he or she understands, information on: how to file the complaint/report; his/her role in the investigations and in the trial; the state of the proceedings; the possibility to obtain legal advice and legal aid; the right to interpretation/translation; protection measures; procedures to challenge violations of one’s rights, and for obtaining reimbursement of expenses. Art. 90-ter (Informing about the offender’s escape or release from prison) in the case of crimes committed with violence against the person, the victim may request information on the offender’s release from detention or remand and must be promptly informed of the escape from prison of the defendant or convict as well as that the detainee has voluntarily escaped detention. Art. 134, para. 4 (Methods of recording) if the minutes, drafted fully or in summary form, are considered to be insufficient, an audio-visual recording of the statement given by the particularly vulnerable victim may be added. Art. 351-1ter (Other preliminary statements) criminal police taking statements from a particularly vulnerable victim are supported by a psychology or psychiatry expert appointed by the prosecutor. in any case, they must ensure that the particularly vulnerable victim does not come into contact with the suspect when giving his/her statements and that he/she is not required”.

Art. 43 of the Unified Text on Immigration, reiterating Art.1, para.1, of the ICERD, stipulates as follows:

1. For the purposes of this chapter, discrimination is any conduct that, directly or indirectly, entails a distinction, exclusion, restriction, or preference based on race, color, descent, or national or ethnic origin, religious beliefs or practices, and that has the purpose or effect of destroying or impairing the recognition, enjoyment, or exercise, on equal terms, of human rights and fundamental freedoms in the political, economic, social, and cultural fields, and in any other area of public life.

2. In any case, an act of discrimination is committed by:

a) a public official, person in charge of a public service, or person providing a public service who, in the exercise of his or her duties, commits or omits acts against a foreign citizen that, solely because of his or her status as a foreigner or as a member of a particular race, religion, ethnicity, or nationality, unfairly discriminates against him or her.

b) anyone who imposes more disadvantageous conditions or refuses to provide goods or services offered to the public to a foreigner solely because of their status as a foreigner or belonging to a particular race, religion, ethnicity, or nationality.

c) anyone who unlawfully imposes more disadvantageous conditions or refuses to provide access to employment, housing, education, training, and social and welfare services to a foreigner legally residing in Italy solely because of their status as a foreigner or belonging to a particular race, religion, ethnicity, or nationality.

d) anyone who impedes, through actions or omissions, the exercise of an economic activity legitimately undertaken by a foreigner legally residing in Italy solely because of their status as a foreigner or belonging to a particular race, religion, ethnicity, or nationality.

e) the employer or his/her agents who, pursuant to Article 15 of Law No. 20 of May 20, 1970, 300, as amended and supplemented by Law No. 903 of 9 December 1977, and Law No. 108 of 11 May 1990, commit any act or conduct that produces a prejudicial effect by discriminating, even indirectly, against workers based on their race, ethnic or linguistic group, religious denomination, or citizenship. Indirect discrimination is any prejudicial treatment resulting from the adoption of criteria that place workers belonging to a particular race, ethnic or linguistic group, religious denomination, or citizenship at a proportionally greater disadvantage, and that concern requirements that are not essential to the performance of their work.

3. This Article and Article 44 also apply to xenophobic, racist, or discriminatory acts committed against Italian citizens, stateless persons, and citizens of other European Union Member States present in Italy.

Art. 44 stipulates as follows:

1. When the behaviour of a private individual or public administration produces discrimination on racial, ethnic, linguistic, national, geographical or religious grounds,

complaint may be lodged before the ordinary judicial authority to demand the cessation of the prejudicial behaviour and removal of the effects of discrimination.

2. Article 28 of Legislative Decree No. 150 of 1° September 2011 applies to disputes provided for in this Article.

(..)

8. Any person who evades the execution of measures, other than the sentence of compensation for damage, rendered by the judge in the disputes provided for in this article shall be punished under the first paragraph of Article 388 of the Criminal Code.

(..)

12. The regions, in cooperation with the provinces and municipalities, with associations of immigrants and charity associations, for the purposes of applying the rules of this article and studying the phenomenon, shall set up monitoring, information and legal aid centres for foreigners, victims of discrimination on racial, ethnic, national or religious grounds.

Article 18-bis of Act No. 482/99, regarding historic linguistic minorities, aims to prevent and punish intolerance and violence against historic linguistic minorities.

By Legislative Decrees No.215/2003 and 216/2003, Italy transposed Directives 2000/43/EU and 2000/78/EU, to prohibit all forms of discrimination based on race or ethnic origin, in any area or sector, both private and public; to regulate the prohibition of discrimination on grounds of religion or belief, disability, age or sexual orientation, with regard to employment and labour. Against this background, both the definitions of direct and indirect discrimination conform to Directive 2000/43/EU.

Legislative Decree No. 208/2021 (Implementation of Directive (EU) 2018/1808 of 14 November 2018) envisages that AGCOM (the Communications Regulatory Authority) may temporarily suspend the reception or retransmission of audio-visual media services provided by a provider under the jurisdiction of another Member State in the event of a manifest, serious and grave violation of the ban on the broadcast of programmes containing incitement to violence or hatred against a group of persons or a member of a group, on grounds of race, sex, religion or nationality. Its article 41, paragraph 7, letter b), provides for the Authority's power to restrict the free circulation of programs, user-generated videos, and audio-visual commercial communications broadcast by a video-sharing platform whose provider is established in another Member State and directed at the Italian public, in order to counter incitement to racial, sexual, religious, or ethnic hatred, as well as violations of human dignity.

Law No. 169/2021 ratified the Council of Europe Convention on Cinematographic Co-Production, as signed in Rotterdam on January 30, 2017. Article 5, paragraph 3, of the Convention excludes cinematographic projects that incite discrimination, hatred, or violence from being eligible for co-production.

Law No. 90/2022 ratified the bilateral Agreement between the Italian Republic and the French Republic on Enhanced Bilateral Cooperation, signed in Rome on November 26, 2021.

Its article 4, paragraph 9 provides that the Parties undertake to jointly combat, *inter alia*, incitement to hatred.

Law No. 53/2022, on "Provisions on statistics on gender-based violence", includes a focus, *inter alia*, on hate crimes. This law aims to strengthen the monitoring of gender-based violence, including misogynistic or gender-based hate crimes, in order to develop appropriate prevention policies.

- The establishment of an inter-ministerial system (Ministries of the Interior, Justice, Equal Opportunities, and ISTAT) for the collection of detailed data on violence against women, including a periodic report to Parliament on ISTAT's activities and integration with data from anti-violence centres and healthcare facilities, will allow for the systematization of data (number of reports, type of crime, victim-perpetrator ratio), aiming to make hatred directed against women more visible.

In a nutshell, as recalled by OSCAD²³, the first legislation dealing with racial discrimination is Law No. 645/1952 (the so- called "Scelba Law"), to implement the XII transitional and final provision, first paragraph of the Constitution. This primarily forbids the re-organization, under any form whatsoever, of the dissolved fascist party and, already in its earlier wording, it included racist propaganda among the ways in which the fascist party pursued its antidemocratic aims.

The first Italian penal law provision specifically countering racism was introduced in the Italian penal system by Article 3 of Law No. 654/1975 ratifying the ICERD Convention.

The relevant offences, which have been amended over time, are currently defined in Art.604-bis of the Penal Code, in accordance with Legislative Decree No. 21/2018. This provision, entitled, "Propaganda and incitement to commit crimes of discrimination based on ethnicity, national origin, and religion" criminalizes all conducts envisaged in Art. 4 of the ICERD Convention: disseminating ideas based on racial superiority or hatred; inciting to commit or committing racially motivated acts of discrimination or of violence; promoting/directing/participating/supporting racist organizations or groups. It also punishes denialist conduct, as provided for by the Framework Decision 2008/913/JHa.

By Law Decree No. 122/1993, converted with amendments into Law No. 205/1993 (the so-called " Mancino Law") a fully-fledged system to combat racism was introduced, punishing *inter alia* the display of fascist emblems and symbols (Art. 2); providing for strict rules as to searches and seizures when starting proceedings for crimes of this nature (Art. 5); requiring the precautionary suspension and the dissolution of racist associations/groups (Art. 7), as well as additional penalties for convicted persons (Art. 1); and, in particular, introducing a special aggravating circumstance (increase in the quantum of the penalty of up to half) for all crimes committed for racist motives or to facilitate the activities of racist

²³ Op.cit. FN No. 7.

associations/groups. This aggravating circumstance cannot be reduced with possibly concurring mitigating circumstances (except for when the offender is a minor) and, most importantly, is always sufficient for the offence to be prosecuted *ex officio* (Art. 6).

Following Legislative Decree No. 21/2018, the so-called “Mancino aggravating circumstance” (former Art. 3 of this Law has become Art. 604ter of the Penal Code).

The regulatory tool used to criminally combat hate speech is Art. 604 bis of the Penal Code (pursuant to Art. 3 of Act No. 654/75, ratification of the International Convention on the Elimination of All Forms of Racial Discrimination) “Propaganda and incitement to crime on grounds of racial, ethnic and religious discrimination”. In fact, the law punishes all the conducts provided for in Art. 4 of the ICERD Convention (propaganda of superiority or racial hatred; incitement or commission of acts of racial discrimination or violence; promotion, direction, participation, assistance to racist organizations or groups as well as negationist conduct). This legislative provision received its completion only pursuant to Act No. 205/1993, the so-called “Mancino Law”. In fact, the legislator wanted to provide for a stringent system to combat racism, criminalizing the demonstrations and, in particular, an aggravating circumstance with a special effect (increase of the penalty up to half) for all crimes committed with racist purposes or to facilitate the activities of racist associations / groups. This aggravating circumstance escapes the so-called “balancing” with any concurrent mitigating circumstances (except that relating to the minor age of the offender) and, above all, always determines the admissibility *ex officio*. As above mentioned, the aggravating circumstance, called “Mancino aggravating circumstance”, was included by Legislative Decree No. 21/2018 in Art. 604ter of the Penal Code.

Regarding **hate speech**, both at the national and supranational levels, there is no specific repressive provision. The Italian legislator has preferred to include it within existing categories (propaganda and incitement to crime based on racial, ethnic, and religious discrimination and defamation). The national legal framework allows to subsume hate speech within the following categories:

Art. 604-bis of the Penal Code envisages *Unless the fact constitutes a more serious offence:*

*a) whoever disseminates ideas based on racial superiority or racial/ethnic hatred, or incites to commit/commits discrimination acts on racial, ethnic, national or religious grounds shall be punished with imprisonment up to one year and six months or with a fine up to 6,000 euro; b) whoever, in any way, **incites to commit/commits violence or acts of provocation of violence on racial, ethnic, national or religious grounds** shall be punished with imprisonment from six months to four years; Any organization, association, movement or group which, in any way, incites to discrimination or violence on racial, ethnic, national or religious grounds shall be prohibited. Whoever participates in said organizations, associations, movements or groups or supports their activities shall, by the mere fact of participating or supporting, be punished with imprisonment from six months to four years. Whoever promotes or directs said organizations, associations, movements, or groups shall, for that reason alone, be punished with imprisonment from one to six years. The punishment*

shall be from two to six years' imprisonment if the propaganda or the instigation and incitement - committed in such a way that a real danger of dissemination arises - are fully or partially based on the denial, gross trivialization or condoning of the Holocaust, or the crimes of genocide, crimes against humanity and war crimes set out in Articles 6, 7 and 8 of the Statute of the International Criminal Court.

The "propaganda of ideas" based on racial or ethnic hatred or superiority, and incitement to commit acts of discrimination on racial, ethnic, national, or religious grounds, are punished. Subparagraph (b), with a much more severe penalty, defines incitement to commit acts of violence or provocation to violence on the same racial, ethnic, national, or religious grounds.

Paragraph 2, on the other hand, penalizes the formation and participation in organizations, associations, movements, and groups whose purposes include incitement to discrimination or violence on the grounds mentioned above.

The concept of propaganda entails the process of influencing behaviour and collective psychology, with a connected support gained. On the other hand, the incitement to commit and the commission of discriminatory acts do not require publicity.

Art. 604-ter of the Penal Code²⁴ envisages as follows: *The penalty shall be increased by up to a half of the sentence for crimes punishable with a penalty other than life imprisonment committed for purposes of discrimination or **ethnic, national, racial or religious hatred**, or to facilitate the activities of organizations, associations, movements or groups having said purposes (...).*

Attention is paid to certain discriminatory behaviours, once again motivated by ethnic, national, racial, or religious hatred. Article 604-ter of the Penal Code, compared to the preceding provision establishes an aggravating circumstance that extends to all other crimes committed (except those punishable by life imprisonment) - thus broadening the punishment scope in the case of discriminatory conducts, even when exceeding the propaganda of ideas or incitement to violence or provocation for racial motives.

Hate speech online

The legal instrument used to counter hate speech is thus Article 604-bis of the Penal Code (introduced by Article 3 of Law No. 654/75), entitled "Propaganda and incitement to crime on the grounds of racial, ethnic and religious discrimination".

Against this background, the expansion of the Web and of the social networks have made communication increasingly rapid, instantly and globally disseminated. *The internet also provides fertile ground for hate speech, forcing all actors involved – public institutions, including the police, civil society organizations and individual users – to take on new challenges.*

²⁴ This is an **aggravating circumstance**.

According to some scholars²⁵, online hatred has specific characteristics and may be: 1. Permanent over time (The longer it is accessible, the higher the risk of possible damage being caused); 2. Itinerant and recurring (Content that has been removed may in fact re-appear under a different name and/or title on the same platform or elsewhere - it is no coincidence that it is said the Web does not forget); 3. Associated with the idea of anonymity and impunity (The proliferation of expressions of hatred is nurtured by the idea of anonymity and impunity associated with the use of the net and by the way users interact with social networks).

Hate speech authors rarely think about the consequences of their own actions and do not realize how their hate messages impact on people's real lives. A number of studies highlight that the so-called "keyboard warriors" do not tend to show such feelings of hatred when they are offline.

By recalling information provided above, additional relevant provisions include, as follows:

By Act No. 122/2016, as later amended by European Law 2017, Italy implemented Directive 2004/80 EC, **introducing the right to compensation for victims of intentional violent crimes**. Specifically, the right to compensation from the State is recognized for the victim of an intentional crime committed with violence against the person (and in any case of the crime referred to in Article 603-bis of the Penal Code (*Caporalato*), with the exception of the crimes referred to in Articles 581 and 582, unless the aggravating circumstances set forth in Article 583 of the Penal Code apply.

As indicated earlier on, Legislative Decree No. 212/2015, entitled "Implementation of Directive 2012/29/EU," establishes minimum standards regarding the rights, assistance, and protection of crime victims. This Legislative Decree also introduced important changes to the Code of Penal Procedure, for example regarding information provided to the victim of the crime, including those relating to the possibility of seeking compensation for damages resulting from the crime and the procedures for exercising this right. The right to interpretation and translation of procedural documents is outlined, and the definition of a victim in conditions of particular vulnerability is defined, which is derived not only from age and state of infirmity or mental deficiency, but also from the type of crime, the manner, and circumstances of the act being prosecuted. **Specifically, this assessment takes into account whether the act was committed with violence against the person or racial hatred**, whether it is linked to organized crime or terrorism, including international terrorism, or human trafficking, **whether it is characterized by discriminatory purposes**, and whether the victim is emotionally, psychologically, or economically dependent on the perpetrator.

Finally, it is to be considered that, "A victim of discrimination can thus resort to: criminal procedures (if s/he has suffered from conducts of a criminal law relevance); administrative

²⁵ Please kindly refer to Gagliardone i., Danit G., Alves T. e Martinez G., *Combattere les discours de haine sur internet*, UNESCO 2015, quoted in: "Hate Speech conoscerlo e contrastarlo. Guida breve per combattere i discorsi d'odio on line." (Amnesty International – Italian Section, 2019), as quoted by OSCAD.

court procedures (e.g. complaints against action by an official or state/municipal institution); and civil procedures (e.g. moral damage). Additionally, the victim can resort to UNAR anti-discrimination tools. Within this framework, mention has to be made also of: a) Referral to the European Court of Justice - When there is a disputed issue of EU law and the judge is uncertain on how to interpret a provision of EU law, a referral can be made by a national court to the European Court of Justice in Luxembourg under Article 234 of the EU Treaty. The parties to the proceedings can ask the national judge to grant a request for such a referral, or the judge can decide upon his/her own motion, to refer the case. Any court may make a referral, but only the national court of last instance is obliged to do so. The European Court is the only body that can give a definitive interpretation of the terms used in the Directives. b) Petition to the European Parliament - The Committee on Petitions of the European Parliament can receive petitions from Citizens of the Union who wish the Committee to investigate about their rights under European Union law which are not being properly respected. c) Alerting the European Commission about discriminatory administrative practices - It is also possible to write directly to the Commission²⁶.

To conclude this section, another more general remark may be made:

- Cases may fall within the category of harassment²⁷ under the relevant non-discriminatory EU Directives and be considered from the perspective of the hate crimes/speech.
- Similarly, there might be cases of discrimination that could fall within, *mutatis mutandis*, the offence of *stalking* in accordance with article 612-bis of the Penal Code²⁸.

²⁶ Please kindly refer to Italy's Common Core Document forming part of the reporting to UN Treaty Bodies (UN Doc. HRI/CORE/ITA/2016 of 25 July 2016, p.43 et ff, under the section on "Information on non-discrimination and equality and effective remedies", available at:

https://tbinternet.ohchr.org/_layouts/15/treatybodyexternal/Download.aspx?symbolno=HRI%2FCORE%2FITA%2016&Lang=en).

²⁷ [Article 2, para.3 of Legislative Decree No. 215/2003](#), transposing EU Directive 43/2000 (2000/43/CE) for the equal treatment of the persons regardless of the race or the ethnic origin, stipulates as follows: Discrimination is also, pursuant to para. 1, the harassment or those unwanted behaviours put in place by one of the reasons set out at article 1, having the purpose or the effect to violate the dignity of a person and to create an intimidating, hostile, degrading, humiliating or offensive climate.

²⁸ Article 612-bis of the Penal Code envisages as follows: "Unless the conduct constitutes a more serious crime, anyone who, through repeated conducts, threatens or harasses someone in such a way as to cause a persistent and serious state of anxiety or fear, or to generate a well-founded fear for their own safety or that of a close relative or a person linked to them by an emotional relationship, or to force them to alter their lifestyle, shall be punished with imprisonment for one year to six years and six months. The penalty is increased if the act is committed by a spouse, including separated or divorced spouses, or by a person who is or has been linked by an emotional relationship to the injured party, or if the act is committed through computer or telematic means. The penalty is increased by up to half if the act is committed against a minor, a pregnant woman, or a person with a disability as defined in Article 3 of Law No. 104 of February 5, 1992, or with weapons or by a disguised person. **The penalty is increased from one-third to two-thirds when the offense is committed as an act of hatred, discrimination, or abuse, or as an act of control, possession, or domination because the offense is committed as a woman, or in relation to the woman's refusal to establish or maintain an emotional relationship, or as an act of restriction of her individual freedoms.** The offense is punishable upon complaint by the injured party. The deadline for filing a complaint is six months. The complaint can only be withdrawn during the proceedings. The complaint is, however, irrevocable if the offense was committed through repeated threats as described in Article 612, paragraph 2. However, prosecution is initiated *ex officio* if the offense is committed against a minor or a person with a disability as defined in Article 3 of Law No. 104 of February 5, 1992, as well as when the offense is connected to another offense for which *ex officio* prosecution is required".

- Likewise, hate crimes might also fall within and refer to the crime of femicide/feminicide, as recently introduced in the penal code of Italy, under article 577-bis (December 2025)²⁹.

- **Jurisprudence**

As recalled by OSCAD³⁰, according to the Court of Cassation case-law (Cass. No.3791/93; Cass. No. 7812/99), the Scelba Law and Reale-Mancino Laws substantially coincide as to the legal interests they protect and are in a relationship of subsidiarity. In case of uncertainty as to which of the above provisions is applicable, the Scelba provisions shall apply should the democratic institutions be at risk – that is, the conduct threatening the democratic order and its underlying values (Cass. No. 8108/2018); otherwise, the Reale-Mancino provisions shall apply (Cass. No. 37390/2007).

More specifically, the relevant penal provisions highlighted so far (Arts. 604-bis & 604-ter of the Penal Code – Title XII on the Crimes against the person, Chapter III on the Crimes against personal liberty, Section 1-bis on the Crimes against Equality) punish discrimination-related offences based on race, ethnicity, national origin, and religion. Indeed, the Italian Court of Cassation, through numerous rulings, has consolidated a rigorous approach against hate crimes and hate speech.

- It should be noted that the Court of Cassation often analyses the context and the author's intent (specific intent – *dolo specifico*) to distinguish hate speech from the simple manifestation of questionable opinions.

As indicated earlier on, the importance of bias indicators – as well as the need for an accurate analysis of the overall context in which the fact has occurred, – are clearly stressed in some Rulings, handed down by the Italian Court of Cassation (Cass. No. 434/99; and Cass. No. 16328/12).

The Supreme Court stresses that to establish the discriminatory motive of an offense, the existence or non-existence of a specific indicator is not a critical factor. Indeed, it is necessary to analyse the whole context.

Moreover, as for racial/ethnic discrimination, the Court of Cassation punishes propaganda and incitement to ethnic/racial hatred, distinguishing it from free expression of thought. At the same time, one of the elements to be considered is the actual dangerousness triggered by the conduct. In this respect, of relevance is the case reported below:

The Court of Cassation, by Ruling No. 1602 of 2020, overturned a decision by the Milan Court of Appeal that convicted two Italian citizens of the crime of racial discrimination propaganda and incitement to crime under article 604-bis of the Penal Code. In this case, the

²⁹ More recently, it is to be recalled the introduction of **the crime of femicide/feminicide** in the Italian penal code under article 577-bis by Act No. 181/2025 (as passed last December). This offence ultimately falls within the category of hate crimes “Whoever causes the death of a woman when the offence occurs as an act of hatred or discrimination (...)”, the penalty of life sentence applies.

³⁰ Op.cit. FN No. 7.

convicted individuals had displayed a poster on an advertising truck with the message "Illegal immigrant kills three Italians with pickaxes – immediate death penalty," along with an image of a guillotine and the chopped head of a black man.

- According to the Court of Cassation, the reasoning of the lower courts in subsuming this conduct within the scope of the criminal offence under Article 604-bis of the Penal Code is flawed because it failed to prove the actual dangerousness of the conduct under reference—an element, considered essential, to establishing the crime.
- Indeed, scholars³¹ recall that in light of the Supreme Court's case-law, a crime is committed when it is demonstrated that the conduct set a concrete risk of discriminatory behaviour. In this case, the contested ruling had instead deemed the distribution of the posters discriminatory *per se*, due to their aggressive content.
- According to the Supreme Court, the ruling of the Court of Appeal in Milan should have instead provided a reconstruction of the context in which the conduct occurred in order to appreciate its discriminatory nature and should have investigated the posters' concrete suitability for inducing others to commit discriminatory acts.³²

Therefore, when addressing the issue of “hate speech”, of crucial importance is the need to achieve a balance between the principles provided for by the national legal system, specifically by Articles 2 (recognition of inviolable rights³³) and 3 (equal social dignity before the law) of the Italian Constitution, and the right to free expression included in Article 21³⁴ of the same text. In this connection, close attention should be paid to the principle established by the Italian Court of Cassation, in line with the indications of the European Court of Human Rights, according to which “in case of conflict between the right to free expression and equal dignity of citizens, the latter should prevail only if conducts occur that may jeopardize this fundamental principle” (Court Ruling No. 36906/2015).

As for the application of article 604-ter of the Penal Code, in light of the framework outlined above,³⁵ the interpretative tools available to the criminal judge in applying the legislation under reference appear broad. This aggravating circumstance applies to a broad range of crimes so that it is considered a "quasi-common" aggravating circumstance. However, it will

³¹ www.osservatorioisullefonti.it

³² Ibidem

³³ Art. 2 of the Italian Constitution stipulates as follows: *The Republic recognises and guarantees the inviolable rights of the person, both as an individual and in the social groups where human personality is expressed. The Republic expects that the fundamental duties of political, economic and social solidarity be fulfilled.*

³⁴ Art. 21 *Anyone has the right to freely express their thoughts in speech, writing, or any other form of communication. The press may not be subjected to any authorisation or censorship. Seizure may be permitted only by judicial order stating the reason and only for offences expressly determined by the law on the press or in case of violation of the obligation to identify the persons responsible for such offences. In such cases, when there is absolute urgency and timely intervention of the Judiciary is not possible, a periodical may be confiscated by the criminal police, which shall immediately and in no case later than 24 hours refer the matter to the Judiciary for validation. In default of such validation in the following 24 hours, the measure shall be revoked and considered null and void. The law may introduce general provisions for the disclosure of financial sources of periodical publications. Publications, performances, and other exhibits offensive to public morality shall be prohibited. Measures of preventive and repressive measure against such violations shall be established by law.*

³⁵ *Crimini e discorsi d'odio nell'ottica penalistica*, Luciana Goisis, Giappichelli Pub., Turin, 2024 (p. 11 et ff.).

be necessary to carefully evaluate, on a case-by-case basis, whether the conduct contains signs of a discriminatory and hateful intent and whether it is capable of making the sentiment of hatred perceptible to the outside. According to the Supreme Court, this aggravating circumstance exists when the action manifests itself as a conscious externalization, immediately perceptible in the context in which it arose, also taking into account common sense, of a feeling of aversion or discrimination based on race, ethnic origin, or colour—that is, a feeling immediately perceptible as inherent to the exclusion of equal conditions. Above all, the Court of Cassation emphasizes that a simple internal motivation for the action cannot be considered sufficient; rather, it must, due to its intrinsic characteristics and the context in which it occurs, be intentionally directed and at least potentially capable of making the aforementioned feeling of hatred perceptible externally and arousing in others, or in any case of giving rise, in the future or in the immediate future, to the concrete danger of discriminatory behaviour based on race, nationality, ethnicity, or religion”.

“The legal value of equal dignity and equal respect is considered, by most scholars, to be the object of protection (*res*) under the relevant legislation. Specifically, scholars have identified an evolution of the legal value protected by these provisions, from the value of public order to human dignity, all the way to anti-discrimination legislation, culminating in the new category of crimes against equality. At the heart of this legislation, it is observed, lies the need not to be humiliated and to be treated as a dignified person whose value equals that of others”. “The judgment of the Court of Cassation No. 24686, dated 16 August 2023, is an exemplary decision both for the reaffirmed respect for human rights, stated at the highest level, and for the wide reference to sources of internal and European legislation and precedents. In rejecting the appeals of the *Lega Nord*, the Court reaffirms the fundamental values of our Constitution, including respect for the equal dignity of human beings, which is, according to a meaningful expression of the European Court of Human Rights, the foundation of a democratic society. Hence, the limits to freedom of expression in political criticism is affirmed, when carried out in intolerant ways, which translate into discriminatory behaviour.

The Court of Cassation was called upon to rule on two complaints filed by the Northern League-Lombardy League and the Northern League for the Independence of Padania against the ruling of the Milan Court of Appeal, deposited on February 6, 2020. The dispute arose from a complaint filed by two NGOs (ASGI and NAGA), against the branch of the Northern League in Saronno, claiming discriminatory conduct based on race and ethnic origin against 32 asylum-seekers.

The League had displayed approximately seventy posters in Saronno denouncing their reception, bearing its symbol, stating: "Saronno does not want illegal (*clandestini*) immigrants," followed by hostile statements and comparisons in the name of an alleged "invasion."

The judge (Milan Court, Ruling of February 22, 2017) recognized the discriminatory nature of the phrase "illegal immigrants" contained on the posters and ordered the League to pay compensation for non-pecuniary damages.

The decision was appealed before the Milan Court of Appeal that upheld the ruling of the Tribunal, stating that the term "illegal immigrants" had referred "to foreigners who have applied for international protection to the Italian State, thereby exercising a fundamental right of the individual, recognized by Article 10 of the Constitution."

The Court of Cassation, once seized, examined "the central issue: the finding, by the lower courts, of discriminatory conduct. To this end, in order to proceed with a correct reading of the relevant domestic legislation, it recalls, in addition to the constitutional sources (Articles 3 and 10 of the Constitution), European law and case-law. In particular, it cites Article 14 of the European Convention on Human Rights on the prohibition of discrimination; Articles 20 to 23 of the Charter of Fundamental Rights of the European Union, in particular Article 21; and Article 10 of the Treaty on the Functioning of the European Union, concerning the objective of non-discrimination.

Therefore, before examining domestic law, the judge recalls the Constitutional Court's position, according to which "there is a relationship of mutual implication and fruitful integration between the prohibition of discrimination prescribed by EU law and the fundamental rights guaranteed by the national Constitution."

Recalling, inter alia, article 28 of Legislative Decree No. 150/2011 (which provides, in the presence of factual elements that give reasonable grounds to presume the existence of discrimination, the reversal of the burden of proof³⁶ on the defendant), the Court focuses in particular on the criticism concerning the term "illegal immigrants", referred in the posters to foreign persons seeking international protection from the Italian State (which entails the application of reception measures and the issuing of a temporary residence permit pursuant to Legislative Decree No. 142 of 18 August 2015, in particular, Articles 1, 4 and 22).

Hence, the Tribunal was correct in ruling that the use of the term "illegal immigrants" was unlawful in this case. Recalling the prohibition of both direct and indirect discrimination, as provided for in the aforementioned article 2 of Legislative Decree No. 215 of 2003, the Court of Cassation recalls its recent Order No. 14836 of May 26, 2023, in which it clarified that "harassment based on race or ethnicity... is constituted by any conduct that is detrimental to a person's dignity." "If it is true," the Court adds, "that one of the founding values of the Italian Constitution is the equal dignity of all persons, it is also true that the term under reference can easily lend itself (and lead), especially when used in a verbal context such as that of the poster in question, to abuse which, by creating an intimidating, hostile, degrading, humiliating, or offensive climate, ultimately results in discriminatory behaviour".

³⁶ See Legislative Decrees No. 215-216/2003 transposing EU Directives on Non-Discrimination.

Nor is it helpful to invoke, as the appellants do, freedom of expression and political criticism, since even the latter must remain within limits and not translate into discriminatory behaviour, as repeatedly reiterated by the jurisprudence of the Court of Cassation itself³⁷.

In 2023, the Court of Cassation (civil section), with Ruling No. 14836 of 26 May 2023, on appeal (*ricorso per cassazione*) by ASGI NGO, stipulated principles of law that represent an application of European Directive 2000/43/EC on 'the implementation of equal treatment between persons irrespective of racial or ethnic origin' (as transposed by Legislative Decree No. 215 of 9 July 2003). The case is relevant, in general terms, to the category of hate speech.

The dispute concerned the assessment of messages addressed to Roma, considered relevant under Directive 2000/43/EC and Legislative Decree No. 215 of 2003, as well as Article 44 of Legislative Decree No. 286 of 1998 (Unified Text on Immigration), which regulates civil actions against discrimination.

The fact refers to a private citizen, subsequently elected municipal councillor of a municipality in northern Italy, who had published two posts on her Facebook profile with content that was offensive to the Roma ethnic group.

The Court of Cassation specifically indicated that the conduct “may constitute harassment within the meaning of Article 3(2) of Legislative Decree No 215 of 2003, both as direct denigration of the characteristics of an ethnic group as such and as association of that ethnic group with criminal behaviour”;

“The manifestation of one's thoughts on social networks, even if initially addressed to a limited circle of people (one's “friends” on Facebook), must still comply with the formal criterion of restraint and, where it is established that it contains content that is harmful to the dignity of others, it may constitute discriminatory harassment if directed at a specific ethnic group, as it is potentially capable of reaching an indeterminate or, in any case, quantitatively appreciable number of people”.³⁸

To conclude this section, worthy of mention is the above-mentioned UN Rabat Plan of Action, noting that, “There is often very low recourse to judicial and quasi-judicial mechanisms (...). In many instances, victims are from disadvantaged or vulnerable groups and case law on the prohibition of incitement to hatred is not readily available. This is due to the absence or inadequacy of legislation or lack of judicial assistance for minorities and other vulnerable groups who constitute the majority of victims of incitement to hatred. The weak

³⁷ Giurisprudenza Penale Web 2023, [La sentenza della Corte di cassazione n. 24686/2023, il divieto di discriminazione, il rispetto della dignità umana](#) di Maria Rosaria Donnarumma.

³⁸ *Discriminazione diretta ed indiretta e linguaggio d'odio*, Antonella Di Florio, *Questione Giustizia* Questione Giustizia (online) (<https://www.questionegiustizia.it/articolo/discriminazione-diretta-ed-indiretta-e-linguaggio-d-odio>).

jurisprudence can also be explained by the absence of accessible archives, but also lack of recourse to courts owing to limited awareness among the general public as well as lack of trust in the judiciary”.

5. Institutional Framework and Responsible Authorities

Besides the role and work, particularly of the Ministries of Education, University, Interior³⁹, Justice, Foreign Affairs and International Cooperation, and the judicial Authorities, mention has to be made of the specific work carried out by: UNAR as Equality Body of Italy and National Roma Contact Point (NRCP); OSCAD; AGCOM, CSOs and academia; and the Extraordinary Senate Commission on “Intolerance, Racism, Antisemitism, Incitement to Hatred and Violence”.

More specifically, the National Office against Racial Discrimination (acronym in Italian, UNAR), established following the entry into force of Legislative Decrees No. 215 and 216, adopted in 2003, has been strengthened over time and its role expanded. UNAR has been constantly monitoring cases of discrimination and hate crimes through its Contact Centre, established in 2004.

With European Law 2019-2020 (published in the Official Bulletin No. 12 of January 17, 2022), Italy implemented Directive 2014/54/EU "on measures to facilitate the exercise of rights granted to workers in the context of the free movement of workers." The text introduced nationality among the factors prohibited by Legislative Decree No. 216/03 regarding discrimination in the workplace, in addition to disability, religion and personal beliefs, age, and sexual orientation. Furthermore, the amendment broadened the scope of the Decree, which is no longer limited to labour but also includes access to housing and social and tax benefits. To ensure the application of these principles, UNAR has been designated as a free movement Body and has also been assigned the task of independently and impartially promoting equality and eliminating any forms of discrimination against workers exercising their right to free movement within the European Union. For this reason, the Office has implemented the services provided by its Contact Center, with the aim of providing specialized assistance to victims of discrimination in the prevention of discrimination, and in the protection of the broader principle of equal treatment.

Since 2016, in view of the increasing number of "hate speech" and online discrimination-related cases, UNAR has been carrying out activities to combat hate speech, mainly through its Contact Centre that receives reports. UNAR also monitors the media, social networks and other online platforms.

In terms of UNAR’s overall activities, mention has to be made of the following: the “National week against racism”; the week for the promotion of the Romani culture and to fight against

³⁹ The [Postal and Communication Police](#) monitors all forms of online racism, through a 24-hour monitoring.

antigypsyism; capacity-building; monitoring; and data-collection exercises, besides support for other relevant Institutions and the promotion of initiatives such as REASON project to fight against hate speech, especially online; awareness-raising campaigns, especially among local Authorities, and human rights trainings for law enforcement agencies, jointly with, among others, OSCAD (HRE).

On a more specific note, UNAR (Italy's Equality Body) works for the application of the equal treatment principle, establishing that all people are entitled to equal treatment and not to be discriminated against on grounds, such as race, religion, disability, nationality or age. UNAR activities include: Gathering reports and providing concrete assistance to the victims of discrimination through its Contact Centre; Monitoring discriminatory phenomena; Developing recommendations; Elaborating studies, papers and research regarding relevant phenomena and possible solutions; Reporting to the Parliament and the Government on its activities; Promoting the culture of respect for human rights and equal opportunities by campaigns and positive action projects; Developing intervention strategy. Following European Commission's Communication No. 173/2011 "*A European Framework for National Roma Integration Strategies up to 2020*", the need for strong governmental coordination of interventions at the national, regional and local levels led to the appointment of UNAR as the National Roma Contact Point for the drafting and implementation of the RSC Strategy 2012-2020. So began the ten-year journey of the *National Roma, Sinti and Caminanti Inclusion Strategy 2012-2020*, inspired by the so-called approach based on human rights and a gender perspective, human rights education and a specific focus on the four main EU "axes", besides attention to Roma legal status. The two-year period 2017-2018 witnessed progress in terms of the involvement and active participation of civil society, in particular the Roma and Sinti communities, in the consultative and decision-making processes envisaged by the RSC Strategy 2012-2020, with the establishment of the National Roma, Sinti and Caminanti Platform and the Forum of Roma and Sinti Communities.

Building on the first Strategy and relevant developments since, UNAR elaborated in 2021 the second National Roma Strategy up to 2030, entitled "*National Roma and Sinti equality, inclusion and participation strategy (2021-2030) Implementation of the Recommendation of the Council of the European Union of 12 March (2021/C 93/01)*".

UNAR does not have locus standi. However, it can provide legal support to those NGOs with locus standi, as admitted to its Register. In this regard, UNAR systematically issues opinions to victims and Associations besides constantly keeping up-to-date the relevant list of Associations, in accordance with Art.5 of Legislative Decree No. 215/2003.

As for UNAR Contact Centre, in 2024 it collected 17,640 reports of alleged discrimination via direct reporting and media and web monitoring, respectively. "The direct reporting channel included 1,106 reports of discrimination (6.3% of the total), confirming the increasing trend of the last five years and a 12.8% increase in relevant cases (641 in total) over the previous year. The media and web monitoring channel recorded 16,534 incidents of discrimination (93.7% of the total).

In 2024, discrimination based on ethnic origin and skin colour was the most frequent in both reporting channels. Although with varying percentages, the manifestations mainly consisted of xenophobic incidents, caused by skin colour and antigypsyism (..).

In continuity with previous years, discrimination based on ethnic origin and skin colour in 2024 remained the most widespread (452, equal to 70.5% of the total), manifesting itself mainly in episodes of generic xenophobia (337, 52.6%), determined by skin colour (87, 13.6%) and, to a lesser extent, by antigypsyism (12, 1.9%) or other factors. In 2024, social media constituted a fertile ground for the spread of hate speech and discrimination; monitoring recorded 10,095 cases of hate speech from the main social networks. The news records 5,378 episodes of discrimination reported by newspapers, both online and offline and on information platforms and thematic forums (..) In line with what was previously described, and in particular due to the strong heterogeneity of the contexts of discrimination that characterises direct reports, the majority of the reported episodes occurred in physical locations (87.5%, equal to 561 episodes) and of these, 58.1% are concentrated in Northern Italy, 26% in Central Italy and 15.9% in the South and Islands.

With regard to UNAR data, by aggregating news-related cases and hate speech cases, in overall terms discrimination based on ethnic origin and skin colour represents the first factor of discrimination (7,383 cases in total), equal to almost half (47.7%) of the 15,473 detected in the period June-December 2024 (..).⁴⁰ In the period June-December 2024, UNAR annual report indicates that they recorded 205 cases of antigypsyism (linked to the web and press) and 396 linked to hate speech via social media, respectively.

In 2010, the Observatory for Security Against Acts of Discrimination (acronym in Italian, OSCAD) was established at the Ministry of Interior.

OSCAD is mandated to overcoming under-reporting of discriminatory offences; enhancing, inter alia, training, and good/best practices exchange at an international level; monitoring discrimination; raising awareness in synergy with other relevant agencies; promoting communication and prevention-related initiatives. OSCAD annually contributes to OSCE reporting on hate crimes. In 2023, it reported 1,106 cases, as disaggregated per crime and not per ground of discrimination (<http://hatecrime.osce.org/Italy>).

Osservatorio per la Sicurezza Contro gli Atti Discriminatori OSCAD, as established at the Ministry of the Interior (*Ministero dell' Interno*) in 2010.

OSCAD aims to: Prevent and fight hate crime, hate speech and all forms of discrimination; Combat under-reporting and under-recording of hate crime; Collect data for monitoring and analysis of hate crime; Suggest adequate interventions, monitor the progress of complaints and provide advice to Police agencies; Raise awareness of hate crime by providing training for law enforcement officers and civil society and by running communication campaigns for students and civil society; Increase cooperation with civil society organisations and with the Italian national equality body.

In terms of outputs as of 2021, mention has to be made of the following: *Short guide to Judaism for police officers (Breve guida all'ebraismo per operatori di polizia)* – a guide developed by OSCAD in cooperation with the Union of Italian Jewish Communities; When hate becomes crime (English version) and *Quando l'odio diventa reato* (Italian version) – an article published in the official national police magazine *Polizia Moderna*. The English

⁴⁰ Please kindly refer to the last available annual report-2024 on its activities, published by UNAR (<https://www.unar.it/portale/relazioni>alle-istituzioni).

translation of the article was published on the official Ministry of the Interior and Italian National Police website. It will also be available in an easy-to-read brochure format; *Hatred of disabled people* (English version) and *L'odio contro le persone disabili* (Italian version) – a brochure published by OSCAD. The brochure is available in English and Italian. It was published on institutional websites and disseminated among Italian and international police forces and stakeholders; *Monitoring of hate crime (Monitoraggio dei crimini d'odio)*. In March 2021, OSCAD published for the very first time on the official Ministry of the Interior website the data concerning unofficial reports that were received in 2010–2019 and official Italian hate crime data submitted to the Organization for Security and Co-operation in Europe (OSCE) Office for Democratic Institutions and Human Rights (ODIHR). These data included overall rates of hate crime per year (2009–2019) and hate crime disaggregated by discriminatory ground and by OSCE crime category (2016–2019).

More specifically, as the Italian law does not allow third-party reporting or anonymous/online reporting, OSCAD adopted an 'intermediate step' to address under-reporting. It created a dedicated email address (OSCAD@dcpc.interno.it) for institutions, associations and private citizens to anonymously report hate crimes, hate incidents and discrimination. However, reporting acts of discrimination to OSCAD does not replace the need to file a police report or call the emergency services. The OSCAD Secretariat receives reports concerning all types of discrimination, collects the data in a database and then analyses the information. The information is integrated into the National System of Criminal Data Collection.

OSCAD cooperates closely with the Italian Equality Body (National Office against Racial Discrimination (*Ufficio Nazionale Antidiscriminazioni Razziali*, UNAR)). In 2011, OSCAD and UNAR signed a memorandum of understanding – which is still in force – to enable the sharing of data and the organisation of training programmes. According to this memorandum, UNAR forwards to OSCAD any cases of discrimination liable for prosecution that are reported to its contact centre; OSCAD sends UNAR any reports received that are not liable for prosecution. Once an incident is reported, OSCAD analyses it and, if it is a crime, contacts the relevant police services to start a proper investigation.

Training is also a priority for OSCAD; it is needed to raise awareness among Police staff and improve their efforts in preventing and combating discrimination and hate crime. Training and information seminars have focused on specific topics; these are presented by experts from the Equality Body, non-governmental organisations, universities and international organisations. The topics covered include: ethnic profiling; hate speech in new media; human rights in law and in practice; lesbian, gay, bisexual, trans and intersex hate crime; Roma, Sinti and Travellers issues; capacity building in law enforcement; and how to deal with vulnerable victims⁴¹.

⁴¹PROMISING PRACTICE - Observatory for Security against Acts of Discrimination OSCAD – Hate crime
<https://fra.europa.eu/en/promising-practices/observatory-security-against-acts-discrimination-oscad-0>

AGCOM (Italian Communications Regulatory Authority) combats hate speech by enforcing regulations on audio-visual media and online platforms, targeting content that violates human dignity or incites discrimination. Through Resolutions No. 37/23/CONS (Delibera n. 37/23/CONS) and No. 157/19/CONS, it mandates the removal of hateful content, promotes co-regulatory procedures, and imposes sanctions in collaboration with the Police. Key aspects of AGCOM's actions against hate speech include a **Regulatory Framework**: The Authority requires service providers to prevent the spread of content that incites violence or discrimination based on race, gender, religion, or orientation. Video sharing platforms are required to have effective reporting systems and submit quarterly reports on their efforts to curb online hate. AGCOM runs initiatives like "Lascia l'odio senza parole" (Leave hate speechless) to raise awareness and promote respectful discourse online. AGCOM is empowered to apply fines (pecuniary sanctions) against media outlets that violate these regulations. Investigations into hate speech often involve the Revenue Guards Corps (*Guardia di Finanza*) and Postal Police (*Polizia Postale*).

Among CSOs, mention may be made of the National Network to Fight against Hate Speech and Hatred-related Phenomena. This Network gathers professionals, academia and NGOs, including, among others, (not exhaustive list): ActionAid; Amnesty International Italia; ARCI; Art.3 – Osservatorio sulle Discriminazioni; ASGI; Associazione Carta di Roma; CRID – Centro di Ricerca Interdipartimentale su Discriminazioni e vulnerabilità; CNF – “Consiglio Nazionale Forense presso il Ministero della Giustizia”; Italiani Senza Cittadinanza; No Hate Speech Movement Italia; Rete Lenford; UCRI – Unione delle Comunità Romanes in Italia; VOX – Osservatorio Italiano sui Diritti. This Network gathers different stakeholders that study, map and fight against hate speech and hatred-related phenomena.

As emphasized earlier on, the Parliament established the Senate's Extraordinary Commission to fight against phenomena of intolerance, racism, antisemitism and incitement to hatred and violence.⁴²

⁴² See FN No. 7 (For further information, please kindly refer to the following link: <https://www.senato.it/commissioni-e-giunte/commissioni-speciali-e-straordinarie/commissione-straordinaria-il-contrasto-dei-fenomeni-di-intolleranza-razzismo-antisemitismo-e/composizione>)

6. Current Situation in the country

The protection of Roma remains a political priority for the EU. As indicated in [the Council Recommendation of 9 December 2013 on effective Roma integration measures in the Member States](#)⁴³, this is an area on which further consolidated action is needed.

- Situation on the ground

In September 2010, [the Council of Europe estimated](#) the average presence of about 140,000 Roma in Italy, corresponding to 0,23% of the total population.

The Extraordinary Commission for the Promotion and Protection of Human Rights of the Italian Senate issued in February 2011 a study on “[the situation of RSC in Italy](#)”, reporting as follows: “Without disaggregated statistics, it is difficult to set goals, determine the tools to pursue and make an assessment on the impact of specific decisions. A better knowledge of the Roma and Sinti communities is necessary to break the vicious circle of lack of knowledge and prejudice: lack of knowledge leads to prejudices, which further misperceptions”⁴⁴.

During a hearing of the National Office of Statistics (acronym in Italian, ISTAT), held in April 2022, before [the Extraordinary Senate Commission to fight against phenomena of intolerance, racism, antisemitism and incitement to hatred and violence](#), with a view to a “fact-finding survey into the nature, causes and recent developments of the phenomenon of hate speech, with particular attention to the evolution of European legislation on the matter⁴⁵”, it was emphasized as follows: “The limited availability of reliable statistical information on the Roma, Sinti, and Caminanti (RSC) population is one of the main factors that hinders the understanding of the issues affecting this population, negatively impacting the development of effective public inclusion policies. The lack of data is due to the complexity of defining the heterogeneous Roma and Sinti population, combined with the limitations imposed by personal data protection legislation. The combination of these factors has led official statistics to rely on self-definition⁴⁶”.

Against this background, under the 2012–2020 National Strategy for the Inclusion of Roma, Sinti and Caminanti (RSC), emphasis was placed *inter alia* on Roma legal status, human rights education and training (HRE), and a gender perspective.

⁴³ EU Council Recommendation of 9 December 2013, on effective Roma integration measures in the Member States (2013/C 378/01).

⁴⁴ The principle of non-discrimination is the fundamental principle of EU law. Articles 2 and 6 of the Treaty on European Union explicitly acknowledge equality and non-discrimination as foundational values in the EU context. Article 21 of the Charter of Fundamental Rights stipulates that “Any discrimination based on any ground such as sex, race, colour, ethnic or social origin, genetic features, language, religion or belief, political or any other opinion, membership of a national minority, property, birth, disability, age or sexual orientation shall be prohibited”. Article 14 of the ECHR stipulates that “The enjoyment of the rights and freedoms set forth in this Convention shall be secured without discrimination on any ground such as sex, race, colour, language, religion, political or other opinion, national or social origin, association with a national minority, property, birth or other status”. Article 2 of the Universal Declaration of Human Rights envisages a fundamental principle of international law, guiding all ensuing international human rights covenants (ICCPR, ICESCR) and conventions (in particular ICERD, UN CEDAW, UNCRC, ICRPD).

⁴⁵ <https://www.senato.it/28001?indagine=1871>

⁴⁶ Please kindly refer to the E-book “*Abitare in Transizione*”, pubblicato nel 2020 (<https://www.istat.it/it/files//2021/03/Abitare-in-transizione-F.pdf>)

In 2022, Italy adopted the (second) National Strategy for Equality, Inclusion and Participation of Roma and Sinti, 2021–2030, in line with the EU Council Recommendation of 12 March 2021 (2021/C 93/01), which calls for concrete measures to combat discrimination and promote the social and socio-economic inclusion of Roma and Sinti communities. This new Strategy builds on the lessons learned from the previous National Strategy for the Inclusion of Roma, Sinti and Caminanti (RSC), 2012–2020, and promotes the adoption of multiannual planning, inter-institutional dialogue, and evidence-based policymaking. The Strategy sets out a range of interconnected actions, including strengthening of local Authorities' capacity; mediation, counselling, and public information campaigns to counter prejudice, reduce discrimination, prevent conflicts, and promote the right to housing⁴⁷.

- "Municipalities declared having activated housing transition projects between 2012 and 2019, for a total of 96 projects analysed (...). At a territorial level, the largest numbers of individuals moving towards stable forms of housing are found in Piedmont (870), Sardinia (843), Tuscany (436), Emilia-Romagna (250), and Trentino Alto-Adige (205) (...). Actions to prevent and mediate conflicts with neighbours are explicitly implemented in 44 projects (...). A total of 373 settlements were found in 126 municipalities (...). 144 settlements were authorized/recognized. Data on the presence in the settlements, provided for 222 settlements, indicates 15,000 individuals⁴⁸."

Within this framework, it is to be recalled the work of international (i.e. UN Treaty Bodies, UN Special Procedures, UPR) and regional (i.e., ECRI, European Committee of Social Rights) monitoring mechanisms over time, such as UN CCPR⁴⁹, requesting the introduction of a dedicated legislation for Roma. This is an issue linked to the variety of legal statuses characterizing Roma in Italy.

- RSC being flown from Non-EU countries as victims of conflict and persecution (Legislative Decree No. 251/1997).
- RSC being citizens of other EU Member-States (Legislative Decree No. 30/2007, as amended by Legislative Decree No.32/2008).
- RSC, who are de jure or de facto stateless people.
- RSC with Italian citizenship, about whom there is a long-standing debate whether they fall within the so-called transnational minority and thus, with the right to reside in any country, or to be considered as citizens of a given State and thus when emigrating, they should fall within the provisions concerning the stay of foreigners⁵⁰.

⁴⁷ Follow-up to the concluding observations on twenty-first periodic report of Italy to UN CERD (UN Doc. CERD/C/ITA/FCO/21, dated 12 September 2025).

⁴⁸ *When Hate becomes crime*, by Stefano Chirico, Lucia Gori & Ilaria Esposito (OSCAD, Polizia Moderna Edition, 2020).

⁴⁹ "The Committee notes with concern that the Roma are not protected as a minority in Italy, on the basis that they do not have a connection with a specific territory. The Committee, while acknowledging the recognition by the delegation of the need to adopt a national law relating to the Roma, recalls that the absence of connection with a specific territory does not bar a community for qualifying as a minority under article 27 of the Covenant. The State party, bearing in mind the Committee's general comment No. 23 (1994) on article 27, should re-examine the situation of the Roma people in Italy, and, in consultation with them, adopt a national law and elaborate an action plan with a view to ensuring that their rights under article 27 are fully implemented" (Concluding Observations of the UN Human Rights Committee on Italy, issued in October 2005 – UN Doc. CCPR/C/ITA/CO/5, para. 22).

⁵⁰ The legal status of Roma and Sinti People in Italy, P. Bonetti, A. Simoni, T. Vitale (eds) (p.45 et ff.), Giuffrè, Milan, 2011 as quoted in the National RSC Inclusion Strategy, 2012-2020.

- There is one more juridical situation, which refers to the situation of children being born in Italy, from foreign parents. In this case, it applies the legislation on citizenship but only under specific law requirements (Act No. 91/92)⁵¹.

Despite the entry into force of Law-Decree No.69/2013 (so-called Kyenge Decree), converted into Act No.98/2013, are very few those who have learnt about the new legislation, aimed at simplifying citizenship acquisition.

- This legislation applies to those who have come of age and cannot prove their constant stay in the Italian territory for the past 18 years due to administrative failures not directly caused by them (Article 33).

The uncertain legal status, as a matter of fact, impacts on Roma. Their regularization remains one of the main issues at stake.

- As mentioned in the Italian Roma Inclusion Strategy, 2012-2020, “for those stateless people without both a clear nationality (“undetermined nationality”) and a stay permit, it is necessary that they are regularized or receive documents identical to those released to the other citizens. The constant threat of expulsion from Italy, the strict relation between the stay permit and the job contract, the difficulties to have access to basic services (including socio-health related ones) concretely hinder a fruitful social integration/inclusion process. The large presence of Non-Italians among Roma, Sinti and Caminanti people raises questions with regard to their integration and overall, their admission and stay in Italy”.
- Moreover, there are cases where in a given family, family members are in very different legal situations. This inevitably determines intra-family discrimination.
- Needless to say, the lack of a clear legal status, especially for those living in settlements, has a negative domino effect on their human rights.

Another issue is antigypsyism, which the European Commission recently indicated as the root cause of Roma exclusion. The European Commission’s report on “The implementation of the national Roma strategic frameworks in light of the EU Roma strategic framework for equality, inclusion and participation and the Council Recommendation on Roma equality, inclusion and participation (EU Doc. 25.9.2024 COM(2024) 422 final, pp. 4-5)”, emphasizes that antigypsyism “manifests itself in various forms such as anti-Roma racism, discrimination, prejudice, stereotypes, stigmatisation, hate speech and hate crimes. The EU Roma strategic framework identifies the fight against both discrimination and antigypsyism as a key objective and cross-cutting priority in each policy area”.

- The EU Commission found that most Member States also explicitly recognise antigypsyism in their legal frameworks and/or policies (BE, BG, CZ, DE, ES, FR, HR, IE, LV, PT, RO, SE, SI, SK) (...). More work is needed to recognise antigypsyism and its negative impact on Roma people’s lives, as well as to implement effective measures to prevent and eliminate it in the long term.
- Analysis of practical application, prosecution trends, conviction rates, and recognition of bias indicators.

⁵¹ See the National RSC Inclusion Strategy, 2012-2020, pp. 2-22.

As indicated in 2022 by ISTAT, during the hearing, in view of the *Fact-Finding Survey on the Nature, Causes, and Recent Developments of the Phenomenon of Hate Speech, with particular attention to the evolution of European legislation on the subject* “The study of discriminatory phenomena represents a challenge for official statistics, both due to the number of dimensions to consider and their complexity in terms of definition and interpretation”.

Pending the publication of the latest relevant survey completed in 2025, Annex No. 1 herewith attached reports the ISTAT data processed by Open Polis (July 2022), regarding proceedings for racial, ethnic, national or religious discrimination.

On a more specific note, “From 2010 to 2018, the number of proceedings for discrimination, hatred or violence increased, from 65 to 98. As for the aggravating circumstance for acts of discrimination on racial, ethnic, national or religious grounds, the peak was reached in 2015, when 282 cases were recorded. The figure then gradually decreased, but 2020 represented an increase compared to the previous year (+16 cases)”.

To better understand the difficulty of the relevant statistical data, within the framework of the aforementioned hearing, ISTAT then added that “there are still no criteria and standards launched at the international level and Eurostat level”. In this regard, they emphasized that the European Union Action Plan against Racism 2020-2025 establishes the need for «a new approach to data collection» involving the disaggregation of collected data by ethnic and «racial» origin in order to «identify both subjective experiences of discrimination and victimization, as well as structural aspects of racism and discrimination»: the aim is to introduce a common methodology and coordination at the European level, assuming that data collection and monitoring represent very relevant issues in order to determine the real extent of the phenomenon and therefore the necessary and possible reactions on the part of the Member States”.

In general terms, it is widely believed that recourse to penal law should be an *extrema ratio* and that the fight against hate speech should be entrusted to different tools, mainly educational, training, and cultural-type. At the same time, as the aforementioned Extraordinary Committee of the Senate⁵² recalls, most hearings highlighted how the current regulatory framework has not proven effective.

The aforementioned Survey indicates that there is a significant underestimation of the phenomenon due to the difficulty, the victims of hate crimes have in reporting (under-reporting), and there is also a difficulty for the public Authority receiving the complaint to act with the necessary determination and professionalism (so-called under-recording).

According to OSCAD, the critical issues in receiving and processing reports of wrongdoing are mainly due to the lack of adequate professional training and specialization of law enforcement aimed at recognizing indicators of prejudice and discriminatory motives behind the crime. And even when it comes to a complaint, obtaining a conviction proves particularly

⁵² Please kindly refer to FN.No. 11.

complicated, especially when the means by which the crime was perpetrated is online; in this case, severe limitations include the difficulty of international judicial cooperation, the complexity of the investigation, and anonymity.

- Furthermore, given the rapid circulation of the hate message and the effect it has, the five- or seven-day intervention of the judicial authority may result useless, especially when the conduct is increasingly amplified following the spread of artificial intelligence and its application.

The then Minister of Justice emphasized before the above Extraordinary Commission that “in five years, from 2016 to the first half of 2021, no more than 300 criminal proceedings were registered to prosecute hate crimes, concentrated in the judicial districts of the North and the large cities of Rome (12.62%) and Milan (4.85%). 80% of cases end in a dismissal and even in the few cases of committal for trial, conviction is achieved in less than half of the cases (40%); the rest end in acquittals or orders of no action. This data confirms that criminal law is useful because it stigmatizes certain behaviours, but it also indicates that the level of complaints is very low indeed and that it is complex for the judge to identify a causal link (..)”.

Data collection related to both hate crimes and speech is a central issue, and the lack of a common cataloguing and processing methodology is one of the major challenges in combating the phenomenon, which impedes the creation of shared databases for violence (On the other hand, the creation and storage of this type of data carries risks regarding its possible discriminatory use).

- *Crucial, in the opinion of many of those heard during the hearings, is the issue of combating under-reporting, which is necessary, among other things, to make both knowledge of the phenomenon and data collection effective. Access to platform data for scientific research purposes, which is essential for determining the actual extent of such phenomena not only in the online world, is currently very limited.*

In this context, recalling the data provided in the Introduction and those reported in Annexes Nos. 1 and 2, Annex No. 3, herewith attached, illustrates the OSCAD- 2024 data for the OSCE indicating the registration by the Police of 893 cases, with respect to which, however, subsequent data relating to any penal actions and/or judicial measures are not available.

On a more general note, of relevance is also the latest report by the OECD (2025) on Combatting Discrimination in the European Union, which in general terms indicates that “Age and sex discrimination are most commonly reported in Europe, followed by ethnicity and skin colour discrimination”. Under Annex No. 4, herewith attached, with regard to Italy illustrates “Age” followed by “Ethnicity/Skin colour”.

Under the OECD report (page 18), a specific issue has been raised with regard to data collection which may be of relevance: “All OECD EU countries collect information that can be

used as proxies for ethnicity – such as country of birth, parents’ country of birth or year of arrival or citizenship – in official statistical surveys, registers or censuses (Balestra and Fleischer, 2018[8]; Valfort, forthcoming). While these data closely map to ethnicity for some people, they are not perfect proxies for everyone, particularly in societies that are becoming more ethnically and racially diverse (Gill, Bhopal and Kai, 2005). Indeed, the United Nations (2017) recommends that country of birth or citizenship should not be used to derive a person’s ethnicity. In the case of Roma people, the largest ethnic non-territorial minority of Europe, questions of country of birth or citizenship would leave them without the option to identify as Roma. Similarly, a question related only to race, but not ethnicity, would leave a Roma person without an option to self-identify.

- The drawbacks of using citizenship as a proxy for ethnicity are clearly visible in analysis of the *2023 Survey on Living Conditions, Origins and Trajectories of the Resident Population in Portugal*. Almost 97% of people who identify as Gypsy are Portuguese citizens, compared to 70% of people who identify as Black and 40% of people who identify as Asian are Portuguese citizens (Figure 1.1). These ethnic breakdowns are masked when only citizenship questions are asked in official surveys, which in turn, renders invisible the diversity of the population, and the trends, outcomes and experiences of different population groups (United Nations, 2017[37]).
- Malta has also recently started to include self-identified ethnicity in official statistical publications. In 2021, Malta included racial origin in the Census of Population and Housing for the first time (Sansone, 2021[38]). Like Portugal, results from Malta show that large proportions of ethnic minority groups have Maltese citizenship, namely 45% of people who identify as having more than one racial origin and 20% of people identifying as Arab or Hispanic or Latino are Maltese citizens (National Statistical Office Malta, 2023[39]). Recent developments in Portugal and Malta follow longstanding efforts in Ireland and Eastern European countries to collect information on people’s self-identified ethnicity in national censuses or registers. Where countries collect information on self-identified ethnic, racial or national origin, they also typically ask questions related to country of birth and spoken languages”.

By recalling the information reported earlier on, within the framework of the aforementioned Fact-Finding Survey, it is observed in the same Survey that “Legal literature agrees upon defining hate speech as a form of incitement to hatred and discrimination which has as its recipient an individual or a group belonging to a target category, or target, by virtue of skin colour, ethnicity, religion, nationality, disability, sex, gender identity, sexual orientation, personal and social conditions. The difficulty emerged, due to the lack of tools adequate to the multiple complexities of the phenomenon, of fully mapping the severity of hate speech, «a gigantic wave » as it was defined during the hearings. [These considerations, in the writer’s opinion, may also apply to hate crimes.] This is certainly an underestimated phenomenon, given the difficulty victims of hate crimes have in reporting (under-reporting) and the difficulty, the public entity receiving the complaint has in recognizing and categorizing hate speech (under-recording), mainly due to the lack of a single definition and consequently the lack of a normative provision that recognizes its specificity.

- As recalled in the above Survey, “This state of play makes the need for intervention to protect the weakest groups in our societies more evident every day” – as exemplified by the last two relevant Recommendations on combating hate speech and hate crime, adopted by the Council of Europe: CM/Rec(2022)16; and CM/Rec(2024)4.

[Furthermore] The European Commission, in the European Union Action Plan against Racism 2020-2025 [COM(2020) 565], highlights the presence of obstacles to democratic participation and representation for groups at risk of marginalization, such as people belonging to minorities. Similarly, in the Action Plan for European Democracy [COM(2020) 790], the European Commission commits to making further efforts in the fight against online hate speech.

The inability of minorities to express themselves, as emerges from the European Commission's approach, constitutes a problem that goes far beyond individual –albeit numerous– episodes of discrimination and incitement to hatred, fitting into a broader general context (...).’’.

On a more specific note, as reported under the Project, entitled “Intersect Voices in Europe - Combating discrimination against Roma women. Comparative qualitative research report on multiple discrimination faced by Roma people in Finland, Italy and Romania in the field of education, health services, housing and employ (Authors: Ph.D. Carmen Gheorghe Ph.D. Cristina Mocanu), with regard to Roma women, discrimination and crimes, it was emphasized as follows:

- “Even if they experience discrimination in education, health, housing and employment, Roma women rarely make their aggressors responsible for their actions. When they decide to act, they usually report acts of aggression that happened in the public sphere, such as bars, restaurants, streets, etc. Only 10 out of the 62 Roma women that were interviewed for this study reported their experiences to the police and only 2 of the incidents reported were solved until the time of the interview, both in favour of the Roma women. The low number of successful petitions, as well as the racist and homo-trans-phobia they receive, are possible explanations for the low number of complaints. Nevertheless, fearing both the aggressors and police also discourages women in reporting and finalizing their actions in reclaiming discrimination. After filling the complaint, the petitioner has no protection within her community, being even more exposed to other aggressions. *“I've never done this. I cannot report the Roma who live here in the camp because, if they find out, they become even more evil.” (Interview 1, Italy) “As I told you, I reported that far-right person who threatened me with death, but then to protect my son I withdraw the complaint. And he had stopped anyway.” (Interview 11, Italy)*
- Most Roma women just do not think of reporting those who insult or harass them, because ignoring this type of behaviour was what they’ve done for their entire life, and even through generations. The long track record of discriminatory treatment

leads to distrust of many norms and institutions, including the justice system. Also, the trust in the police capacity to believe them and to protect their interests is very low, sometimes non-existent. This is reinforced by stories of police abuse against Roma/LGBT that they hear within the communities, neighbourhood, family or from the media. Reporting discrimination asks for specific skills and resources, and the most vulnerable Roma women usually do not have access to them in order to ask for justice (...).

- Distrust and fear of police due to lesbo-trans-phobia is also present in interviews, as Roma lesbians and transgender and most of the respondents preferred not to report violence or acts of discrimination. Even if they have the skills to report it, they would rather adopt coping strategies or try to blend into society, to be as invisible as possible if they are white passing. This does not mean that they choose, but rather protect themselves from more discriminatory treatments as they are constantly targeted. Thus, in aggravated situations they report violence but the need to have a legal representation is important in overcoming the barrier in communication with the police or justice system.

"I made a complaint because I was slapped, insulted and so on, and at this moment, the complaint I've made is pending. I also have some ...[NGO] lawyers helping me, otherwise I would not have afforded it. And when you have some lawyers by your side, you know they are there for you, you know they'll help you, you have more confidence in yourself."
(Interview 5, Romania)

For immigrant women, the lack of language skills is one of the most important obstacles in reporting discrimination. The sense of not belonging to the country that they live in makes them feel illegitimate to complain against natives.

"Why to complain, it's their country after all, it's not my country [laughs]. Why would I go and report Finnish people? When it's your country you do what you want. It's their countries, they have rights, we have less." (Interview 5, Finland)"

Last, it is to be considered the OSCE Guide, entitled "Prosecuting Hate Crimes. A practical Guide (page 17)", when it stresses that: *Hate crimes are message crimes. Unlike victims of other criminal acts, hate crime victims are selected on the basis of what they represent rather than who they are. The victim is targeted because of his or her membership in a group. As such, hate crimes convey the message to both the victim and to their group that they are not welcome and they are not safe. This wider impact makes hate crimes more serious than the same crime without the bias motive.*

Hate crimes seek to divide communities. Although not always the case, hate crimes are generally committed against groups that have already experienced some form of social discrimination. Members of marginalized groups (whether racial, ethnic, religious or other)

who are victims of hate crimes may find that their experiences are not believed or are simply dismissed by law enforcement. The lack of an effective response from authorities encourages perpetrators to reoffend and further alienates the victim and her or his community. This, in turn, can undermine wider social cohesion, as communities are set against each other, and can provoke retaliatory attacks. At their most extreme, hate crimes can spiral into civil unrest if governments do not acknowledge and address them.

For individual prosecutors, these issues may seem remote. Hate crimes are unlikely ever to comprise more than a small proportion of the cases dealt with by any prosecutor, and many prosecutors will never have to prosecute such a case. However, unless prosecutors are equipped to recognize these cases and respond appropriately, there is a danger that when such cases do arise, the bias motivation will not be recognized. If hate crimes are not recognized or not properly addressed by the criminal justice system, both the victim and the wider community can lose confidence in the justice process.

7. Roma-Specific Context and Impact

As reported earlier on, according to the National Roma, Sinti and Caminanti Inclusion Strategy of Italy (2012 – 2020), Roma, Sinti and Caminanti (acronym in Italian, RSC) people of all age groups amount to 0,22 - 0,25% of the total Italian population.

- The percentage of the RSC children under the age of 16 (45%) is three times higher than the national average (15%), for the same age group. The percentage of over sixty-year-old RSC people (0,3%) is a small portion of the national population average, for the same age group (25%).

On February 6, 2017, UNAR presented, jointly with ANCI (standing for, the National Association of Italian Municipalities) and ISTAT, the result of a two-year long project covering the period 2013-2015 (*"Gli strumenti di conoscenza e le sfide dell'informazione statistica per la strategia d'inclusione di Rom, Sinti e Caminanti"*). This project, by collecting data concerning Roma and Sinti in Italy - mainly in settlements -, aimed to monitor the housing situation of RSC in the Italian Municipalities with over 15,000 inhabitants (i.e., private houses, social housing, settlements, etc.). 606 out of the 738 Municipalities concerned replied to ANCI's questionnaire: 55 % of Roma and Sinti were at home, mainly in North-Eastern Italy and mostly in public housing solutions. In 163 Municipalities out of 206, 79% of Roma and Sinti were living in settlements. Settlements were 516, mainly in Lombardy, Emilia-Romagna, Latium, Tuscany, Piedmont.

More generally, as indicated in the follow-up to last periodic report of Italy before UN CERD Committee⁵³, Italy has long been committed to promoting concrete measures for the social inclusion of Roma, Sinti and Caminanti (RSC) communities.

- The 2012–2020 National Strategy for the Inclusion of Roma, Sinti and Caminanti (RSC) identified as a key priority the need to “definitively overcome emergency approaches and large mono-ethnic settlements, respecting local opportunities, family unity, and promoting equitable relocation strategies.”
- In 2022, Italy adopted the (second) National Strategy for Equality, Inclusion and Participation of Roma and Sinti 2021–2030, in line with the Council Recommendation of the European Union of 12 March 2021 (2021/C 93/01), which calls for concrete measures to combat discrimination and promote the social and socio-economic inclusion of Roma and Sinti communities. One of the key objectives of the Strategy is to ensure access to adequate housing, in accordance with European and international standards, and to ensure that housing policies contribute to inclusion rather than segregation. The new Strategy builds on the lessons learned from the previous National Strategy for the Inclusion of Roma, Sinti and Caminanti (RSC), 2012–2020, and promotes the adoption of multiannual planning, inter-institutional dialogue, and evidence-based policymaking.

Civil society organisations, including those active in the National Roma and Sinti Platform established by UNAR in 2017, have played a crucial role in providing territorial knowledge and supporting the design of measures.

- Since 2018, UNAR has been promoting the development of Local Action Plans (*Piani di Azione Locale – P.A.L.*), as implemented through local dialogue and coordination platforms led by municipalities such as Rome, Cagliari, Milan, Genoa, Naples, Bari, Messina, and Catania. The objective is to foster integrated policies and promote the active participation of Roma, Sinti, and Caminanti (RSC) communities in all life’s spheres.
- In parallel, UNAR, in cooperation with the Conference of Regions, launched the Regional Action Plans (*Piani di Azione Regionale – P.A.R.*) to support the design and implementation of measures for social and housing inclusion. These plans provide technical assistance and aim to improve access to financial resources for Roma and Sinti individuals facing heightened social vulnerability.

The second National Strategy sets out a range of interconnected actions, including strengthening of local Authorities’ capacity; Mediation, counselling, and public information campaigns to counter prejudice, reduce discrimination, prevent conflicts, and promote the right to housing.

⁵³ Follow-up to the concluding observations on twenty-first periodic report of Italy to CERD (UN Doc. CERD/C/ITA/FCO/21, dated 12 September 2025).

Against this background, as indicated earlier on, during a hearing by ISTAT held in April 2022 before the Extraordinary Senate Commission to fight against phenomena of intolerance, racism, antisemitism and incitement to hatred and violence⁵⁴, “The limited availability of reliable statistical information on the Roma, Sinti, and Caminanti (RSC) population is one of the main factors that hinders the understanding of the issues affecting this population, negatively impacting the development of effective public inclusion policies.

- The lack of data is due to the complexity of defining the heterogeneous Roma and Sinti population, combined with the limitations imposed by personal data protection legislation. The combination of these factors has led official statistics to rely on self-definition⁵⁵.

Against this background, as reported in Italy’s follow-up to ICERD-2025, 42 Municipalities declared having activated housing transition projects between 2012 and 2019, for a total of 96 projects analysed. The municipalities with the highest number of activated projects were Sesto Fiorentino (Florence), Trento, Moncalieri (Turin), and Rome.

Moreover, 3,120 individuals moved into stable housing through specific projects. At a territorial level, the largest numbers of individuals moving towards stable forms of housing are found in Piedmont (870), Sardinia (843), Tuscany (436), Emilia-Romagna (250), and Trentino Alto-Adige (205). In 52.8% of the projects, actions were implemented to facilitate access to social housing and inclusion in the rankings for housing emergencies; in 42.7% of the projects, the finding of housing found on the real estate market was envisaged. Among the selection criteria for beneficiaries to access the projects, residence in the municipality appears to be the predominant one, used by 73 out of 96 projects, followed by a residence permit (indicated in 44 cases) and demonstrable permanence in the municipality (in 38 cases, including living in a settlement or rest area), as well as school enrolment of minors (in 24 cases). 40 projects provided support for the regularization of legal status, which is one of the most widespread problems. Actions to prevent and mediate conflicts with neighbours are explicitly implemented in 44 projects. A total of 373 settlements were found in 126 municipalities.

- More specifically, in terms of latest available statistics, a national survey by UNAR, in collaboration with ISTAT, highlights two positive trends: the discontinuation of the practice of creating new segregated settlements, and the reduction of forced evictions carried out without compliance with minimum standards and without the provision of suitable alternatives. Worthy of mention is also a trend of decrease in the presence in the settlements: from about 28,000 individuals in 2015 to about 14,000 individuals in 2020.⁵⁶

As reported earlier on, the context under reference requires a specific focus on the recommendations put forward by international and regional mechanisms over time, such as

⁵⁴ Under “The fact-finding survey into the nature, causes and recent developments of the phenomenon of hate speech, with particular attention to the evolution of European legislation on the matter: <https://www.senato.it/28001?indagine=1871>

⁵⁵ Please kindly refer to the E-book “Abitare in Transizione”, issued in 2020 (<https://www.istat.it/it/files/2021/03/Abitare-in-transizione-F.pdf>)

⁵⁶ Op.cit. in FN No. 10.

UN CCPR⁵⁷, requesting the introduction of a dedicated legislation for Roma – provided that Roma individuals in Italy may fall in different legal categories (*status civitatis*)⁵⁸.

- The important issue of their regularization remains one of the issues at stake.

Another issue is antigypsyism which the European Commission recently indicated as the root cause of Roma exclusion. In this respect, of relevance is also the data provided by UNAR Contact Centre in UNAR annual report to the Parliament (the latest available refers to the year 2024).

The European Commission's report on "The implementation of the national Roma strategic frameworks in light of the EU Roma strategic framework for equality, inclusion and participation and the Council Recommendation on Roma equality, inclusion and participation (EU Doc. 25.9.2024 COM(2024) 422 final, pp. 4-5)", emphasizes that antigypsyism: "manifests itself in various forms such as anti-Roma racism, discrimination, prejudice, stereotypes, stigmatisation, hate speech and hate crimes. The EU Roma strategic framework identifies the fight against both discrimination and antigypsyism as a key objective and cross-cutting priority in each policy area".

- Provided that the Commission found that most Member States also explicitly recognise antigypsyism in their legal frameworks and/or policies (BE, BG, CZ, DE, ES, FR, HR, IE, LV, PT, RO, SE, SI, SK), it also stressed that there are positive developments in this area. However, more work is needed to recognise antigypsyism and its negative impact on Roma people's lives, as well as to implement effective measures to prevent and eliminate it in the long term.

Along these lines, the EU-FRA Roma survey 2024,⁵⁹ as published in 2025, asked all respondents about their perception of being discriminated against on a variety of grounds and in various situations. The grounds examined are skin colour or racial origin, Roma/Traveller background, religion, age, sex, disability, sexual orientation, gender identity and 'other'. The results from the Roma Survey concerning the level of discrimination suggest almost no change compared with previous surveys, with some variations in trends among the countries covered.

⁵⁷ "The Committee notes with concern that the Roma are not protected as a minority in Italy, on the basis that they do not have a connection with a specific territory. The Committee, while acknowledging the recognition by the delegation of the need to adopt a national law relating to the Roma, recalls that the absence of connection with a specific territory does not bar a community for qualifying as a minority under article 27 of the Covenant. The State party, bearing in mind the Committee's general comment No. 23 (1994) on article 27, should re-examine the situation of the Roma people in Italy, and, in consultation with them, adopt a national law and elaborate an action plan with a view to ensuring that their rights under article 27 are fully implemented" (Concluding Observations of the UN Human Rights Committee on Italy, issued in October 2005 – UN Doc. CCPR/C/ITA/CO/5, para. 22).

⁵⁸ RSC being flown from Non-EU countries as victims of conflict and persecution (Legislative Decree No. 251/1997); RSC, being citizens of other EU Member-States (Legislative Decree No. 30/2007, as amended by Legislative Decree No.32/2008); RSC, who are de jure or de facto stateless people; RSC with Italian citizenship, about whom there is a long-standing debate whether they fall within the so-called transnational minority and thus, with the right to reside in any country, or to be considered as citizens of a given State and thus when emigrating, they should fall within the provisions concerning the stay of foreigners⁵⁸. An additional situation refers to Roma children being born in Italy, from foreign parents. In this event, the legislation on citizenship applies but only under specific law requirements (Act No. 91/92).

⁵⁹ Rights of Roma and Travellers in 13 European Countries – Perspectives from the Roma Survey 2024, pp. 26-28, EU-FRA Agency, Vienna, 2025.

- **On average, almost every third Roma/Traveller respondent (31 %) felt discriminated against based on their ethnic background in the 12 months preceding the survey (..) Discrimination rates have reached their highest levels in Ireland (for both groups), Italy and Portugal.**
- In Ireland, Roma women face hate-motivated harassment more often than Roma men (..). In the remaining countries, there are no notable differences between Roma/Traveller women and Roma/Traveller men with regard to harassment.
- On average, across all countries, younger respondents record higher rates of hate-motivated harassment than those aged 65 or older. Respondents living in communities with fewer other Roma/Travellers experience hate-motivated harassment less often than those living in neighbourhoods where all or most of the people are Roma/Travellers in Albania, Italy, Portugal, and Serbia.

Violent crime, including hate crime, can result in a violation of fundamental rights, in particular the rights to human dignity and the integrity of the person (Articles 1 and 3 of the Charter of Fundamental Rights): The EU-FRA Roma Survey 2024 asked respondents about their experiences of physical violence (i.e. being physically attacked – for example, being hit, pushed or grabbed) that they perceived as motivated by their Roma/Traveller background.

- On average, 1% of respondents report such incidents, which is similar to the results from the previous Roma/Traveller surveys.

The situation has worsened with regard to the reporting of discrimination, despite increased awareness of human rights institutions and increased trust in the legal system and the Police. The data also suggests that COVID-19 has had a large impact on Roma across the countries surveyed⁶⁰.

⁶⁰ This report presents data on Roma and Travellers at the midpoint of the EU Roma framework's timeline, collected through FRA's 2024 Roma Survey in ten Member States and three accession countries. It is structured based on the objectives of this policy framework. Data from the Roma Survey 2024 suggest that, on average for the 10 Member States studied, there have been improvements in Roma/ Travellers' access to fundamental rights since 2016 (2019 for France and Ireland) with regard to 10 out of the 16 headline indicators used for monitoring in the EU Roma framework. This means that Roma and Travellers had greater access to certain rights in 2024 than in the past. These include the right to a standard of living adequate for the health and well-being of individuals and their families (partial improvement), the right to education (partial improvement), the right to work (partial improvement) and the right to access preventative healthcare and to benefit from medical treatment. The situation has worsened with regard to the reporting of discrimination, despite increased awareness of human rights institutions and increased trust in the legal system and the police. No change has been observed with regard to five indicators, which relate to targets regarding discrimination (overall and in individual areas of life), segregation in education, gender equality in employment and overcrowding. The first four are directly linked to rights guaranteed by aforementioned EU human rights law. The data also suggest that COVID-19 has had a large impact on Roma across the countries surveyed. The report presents a number of positive developments, all of which are linked to the aforementioned rights. They include fewer Roma/ Travellers experiencing poverty, material deprivation and housing deprivation, more Roma/Travellers trusting the police or the legal system in their country, more Roma/Traveller children participating in early childhood education, more Roma being engaged in paid work and a decrease in the gap between Roma/Travellers and the general population with regard to life expectancy at birth. However, there are still areas showing negative developments in terms of Roma/Travellers' access to fundamental rights. Over the past decade, Roma/Travellers in all countries surveyed have faced increasing levels of discrimination. This is true overall, but especially with respect to their access to specific socioeconomic rights (education, employment, health and housing). Roma/Traveller children are still predominantly educated in segregated facilities and Roma/Travellers still frequently live in overcrowded dwellings. The data suggest that most of the EU-level goals set by the EU Roma framework for increasing effective equal access to quality and sustainable employment are likely to be achieved by 2030. However, the remaining six EU-level objectives are not likely to be achieved by then. No country is likely to achieve the EU-level goals set for antigypsyism and discrimination, participation or health. Two countries each are likely to achieve the EU-level objectives on poverty and social exclusion (Bulgaria and Hungary) and education (Bulgaria and Italy). Four countries each are likely to achieve the objectives on employment (Bulgaria, Hungary, Italy and Romania) and housing (Czechia, Greece, Italy and Spain). A closer look at the

As previously recalled, on the occasion of last consideration of Italy under Universal Periodic Review (UPR Cycle 4, 20 January 2025)⁶¹, among relevant recommendations, as accepted by Italy, the following may be recalled:

- (i) 34.57 Take steps to reduce discrimination in public services, housing and education for members of marginalized communities, including (...) Roma (...)
- (ii) 34.77 Combat discrimination and social exclusion of minorities, particularly Roma and Sinti communities, by guaranteeing equal access to housing, healthcare, education and employment opportunities
- (iii) 34.340 Strengthen efforts to address the ongoing *de facto* statelessness, especially among Roma in formal settlements without regular documentation.

Of relevance is also the 2023 Court of Cassation Ruling No. 14836. The dispute concerned the assessment of messages addressed to Roma, considered relevant under Directive 2000/43/EC and Legislative Decree No. 215 of 2003, as well as Article 44 of Legislative Decree No. 286 of 1998 (Unified Text on Immigration). The Court of Cassation specifically indicated that the conduct “may constitute harassment within the meaning of Article 3(2) of Legislative Decree No 215 of 2003, both as direct denigration of the characteristics of an ethnic group as such and as association of that ethnic group with criminal behaviour”⁶².

The EU-FRA Roma survey 2024⁶³, published in 2025, asked all respondents about their perception of being discriminated against on a variety of grounds and in various situations. The grounds examined are skin colour or racial origin, Roma/Traveller background, religion, age, sex, disability, sexual orientation, gender identity and ‘other’.

- The results from the Roma Survey concerning the level of discrimination suggest almost no change compared with previous surveys, with some variations in trends among the countries covered.
- On average, almost every third Roma/Traveller respondent (31 %) felt discriminated against based on their ethnic background in the 12 months preceding the survey (...)
- Discrimination rates have reached their highest levels in Ireland (for both groups), Italy and Portugal.
- In Ireland, Roma women face hate-motivated harassment more often than Roma men (...). In the remaining countries, there are no notable differences between Roma/Traveller women and Roma/Traveller men with regard to harassment.

individual goals shows that all of the countries have the most difficulty with those related to closing the gap between Roma/Travellers and the general population.

⁶¹ Report of the (UN Human Rights Council) Working Group on UPR – Italy UN Doc. A/HRC/59/4 dated March 2025.

⁶² *Discriminazione diretta ed indiretta e linguaggio d’odio*, Antonella Di Florio, *Questione Giustizia* Questione Giustizia (online) (<https://www.questionegiustizia.it/articolo/discriminazione-diretta-ed-indiretta-e-linguaggio-d-odio>).

⁶³ *Rights of Roma and Travellers in 13 European Countries – Perspectives from the Roma Survey 2024*, pp. 26-28, EU-FRA Agency, Vienna, 2025.

- On average, across all countries, younger respondents record higher rates of hate-motivated harassment than those aged 65 or older.
- Respondents living in communities with fewer other Roma/Travellers experience hate-motivated harassment less often than those living in neighbourhoods where all or most of the people are Roma/Travellers in Albania, Italy, Portugal, and Serbia.

8. Preliminary Recommendations

As reported by EUROMA Network last January 2026, the European Commission has launched the EU Anti-Racism Strategy 2026–2030, aiming to take a significant step forward for advancing Roma equality, and to place structural racism, evidence-based policymaking, and targeted investment at the heart of EU action. This Strategy aims to tackle structural racism, recognising antigypsyism as a specific and severe form of racism, announcing work on definitions, data collection, and anti-racism education. It strengthens enforcement of anti-discrimination law and protection from hate offences, with explicit attention to racial bias in policing and algorithmic discrimination. These measures, alongside improved accountability systems, aim to reinforce safeguards for Roma, who frequently face discriminatory profiling and under-reported hate crimes. By the latest EU Commission Communication containing the EU Anti-Racism Strategy 2026-2030 (Doc. 12/2026), it emerges *inter alia* as follows:

- *Improving capacity building*
- *Understanding structural racism to tackle it effectively*
- *Remembrance, education, and awareness-raising*
- *Evidence-based policymaking*
- *Improving the collection of equality data*
- *Countering racial bias in public administration*
- *Inclusive education and culture as a catalyst for social equality and competitiveness*
- *Fostering key partnership* (at all levels).

By recalling the above-mentioned preliminary main recommendations, also stemming from the Universal Periodic Review of Italy (January 2025), among relevant activities mention could be made of the following:

- Providing legal orientation, counselling, and legal aid, including with regard to stay permits, citizenship acquisition, especially for Roma women and children.
- Providing information with a view to facilitating the emergence of any other access to justice-related need (i.e., cases of discrimination, violence).
- Training for the judiciary, legal professional and other relevant categories, such as physicians and social care providers.
- Dedicated integrated training sessions for the judiciary and law enforcement, including local police, including on human rights laws.

ROMANET CERV-2024-CHAR-LITI
Project: 101215052



All the above would contribute to: Strengthen reporting mechanisms; Improve bias recognition (through training); Enhance data collection; Address legislative and/or policy gaps; Prevent secondary victimization.

- To this end, it is recommended a publicly accessible Glossary, to be developed with a child-friendly and a HRBA, for all relevant stakeholders and beneficiaries, including for orientation purposes towards, international, regional, national, and local relevant services and standards (considering previous relevant Glossaries such as ECRI's, as well as UN CERD Committee's General Recommendations and other standards).

9. References and Sources

- Legal texts (not exhaustive list)

[UN Rabat Plan of Action on the prohibition of advocacy of national, racial or religious hatred that constitutes incitement to discrimination, hostility or violence](#) (UN Doc. A/HRC/22/17/Add.4, dated 11 January 2013)

Concluding Observations of the UN Human Rights Committee on Italy, issued in October 2005 (UN Doc. CCPR/C/ITA/CO/5)

Report of the (UN Human Rights Council) Working Group on UPR – Italy (UN Doc. A/HRC/59/4 dated March 2025)

Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, containing Anti-Racism Strategy 2026-2030 (Doc. 12/2026)

Communication from the Commission to the European Parliament, the Council, the European Economic and Social Committee and the Committee of the Regions, containing Anti-Racism Action Plan 2020-2025 [COM(2020) 565]

European Union Action Plan for European Democracy [COM(2020) 790]

Council Framework Decision 2008/913/JHA of 28 November 2008 on combating certain forms and expressions of racism and xenophobia by means of criminal law

Council Directive 2000/43/EC of 29 June 2000 implementing the principle of equal treatment between persons irrespective of racial or ethnic origin

Council Directive 2000/78/EC of 27 November 2000 establishing a general framework for equal treatment in employment and occupation

Council Directive 2004/80/EC of 29 April 2004 relating to compensation to crime victims

Directive (EU) 2018/1808 of the European Parliament and of the Council of 14 November 2018 amending Directive 2010/13/EU on the coordination of certain provisions laid down by law, regulation or administrative action in Member States concerning the provision of audiovisual media services (Audiovisual Media Services Directive) in view of changing market realities

Directive 2012/29/EU of the European Parliament and of the Council of 25 October 2012 establishing minimum standards on the rights, support and protection of victims of crime, and replacing Council Framework Decision 2001/220/JHA

ROMANET CERV-2024-CHAR-LITI
Project: 101215052



Directive 2014/54/EU of the European Parliament and of the Council of 16 April 2014 on measures facilitating the exercise of rights conferred on workers in the context of freedom of movement for workers

Council Recommendation of 9 December 2013 on effective Roma integration measures in the Member States (2013/C 378/01)

Council Recommendation of 12 March 2021 on Roma equality, inclusion and participation (2021/C 93/01)

Recommendation (97)20 of the Committee of Ministers of the Council of Europe to the Member States on “Hate speech”

Recommendation (16)22 of the Committee of Ministers of the Council of Europe to Member States on combating hate speech

Recommendation (4)24 of the Committee of Ministers of the Council of Europe to Member States on combating hate crime

Laws: Act No. 645/1952; Act No. 654/1975, as later amended by Act No.205/ 1993; Act No. 300/1970; Act No. 91/92; Act No.98/2013; Act No. 482/1999; Act No. 122/2016; Act No. 90/22; Act 53/22; Act No. 181/2025

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